

The Real **Jefferson Davis**



LANDON KNIGHT

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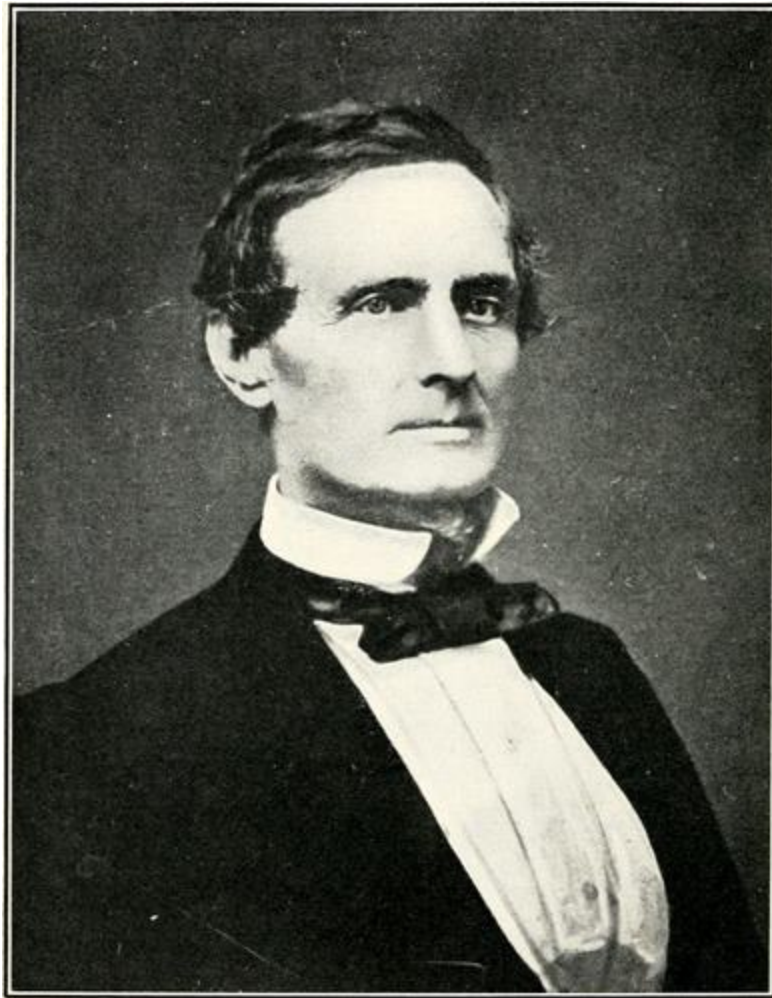
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JEFFERSON DAVIS ***

THE REAL JEFFERSON DAVIS



Jefferson Davis
(From a photograph taken in 1865)

The Real Jefferson Davis

By
LANDON KNIGHT

“Where once raged the storm of battle now bloom the gentle flowers of peace, and there where the mockingbird sings her night song to the southern moon, sweetly sleeps the illustrious chieftain whom a nation mourns. Wise in council, valiant in war, he was still greater in peace, and to his noble, unselfish example more than to any other one cause do we owe the indellible inscription over the arch of our union, ‘*Esto perpetua.*’”

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DEDICATION

To My Wife

Is dedicated this little volume in appreciation
of that innate sense of justice which has ever
loved and followed the right for its own sake.

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PREFACE

For four years Jefferson Davis was the central and most conspicuous figure in the greatest revolution of history. Prior to that time no statesman of his day left a deeper or more permanent impress upon legislation. His achievements alone as Secretary of War entitle him to rank as a benefactor of his country. But notwithstanding all of this he is less understood than any other man in history. This fact induced me a year ago to compile a series of magazine articles which had the single purpose in view of painting the real Jefferson Davis as he was. Of course, the task was a difficult one under any circumstances, and almost an impossible one in the restricted scope of six papers, as it appeared in *The Pilgrim*. However, the public according to these papers an interest far beyond my expectation, I have decided to revise and publish them in book form.

This work does not attempt an exhaustive treatment of the subject but, as the author has tried faithfully and without prejudice or predilection to paint the soldier, the statesman, the private citizen as he was, he trusts that this little volume may not be unacceptable to those who love the truth for its own sake.

L. K.

Akron, Ohio, Aug. 16, 1904.

The Real Jefferson Davis

I. Birth and Education

Almost four decades have passed since the surrender at Greensboro of Johnston to Sherman finally terminated the most stupendous and sanguinary civil war of history. Few of the great actors in that mighty drama still linger on the world's stage. But of the living and of the dead, irrespective of whether they wore the blue or the gray, history has, with one exception, delivered her award, which, while it is not free from the blemish of imperfection, is nevertheless, in the main, the verdict by which posterity will abide. The one exception is Jefferson Davis. Why this is so may be explained in a few words.

Occupying, as he did, the most exalted station in the government of the seceding states, he became from the day of his accession to the presidency, the embodiment of two diametrically opposite ideas. The loyal people of the North, disregarding the fact that the Confederacy was a representative government of limited powers, that a regularly elected congress made the laws, often against the judgment of the chief executive, that many of the policies most bitterly condemned by them were inaugurated against his advice, transformed the agent into the principal and visited upon him all of the odium attaching to the government that he represented. Nay, more than this. The bitter passions engendered in the popular mind by the conflict clothed him with responsibility, not only for every obnoxious act of his government, but, forgetful of the history of the fifty years preceding the Civil War, saddled upon him the chief sins of the very genesis of the doctrine of secession itself. Thus confounded with the principles of his government and the policies by which it sought to establish them, the acts for which he may be held justly responsible have been magnified and distorted while the valuable services previously rendered to his country, were forgotten or minimized, and Jefferson Davis as he was disappeared, absorbed, amalgamated, into the selfish arch traitor intent upon the destruction of the Union to gratify his unrighteous ambition.

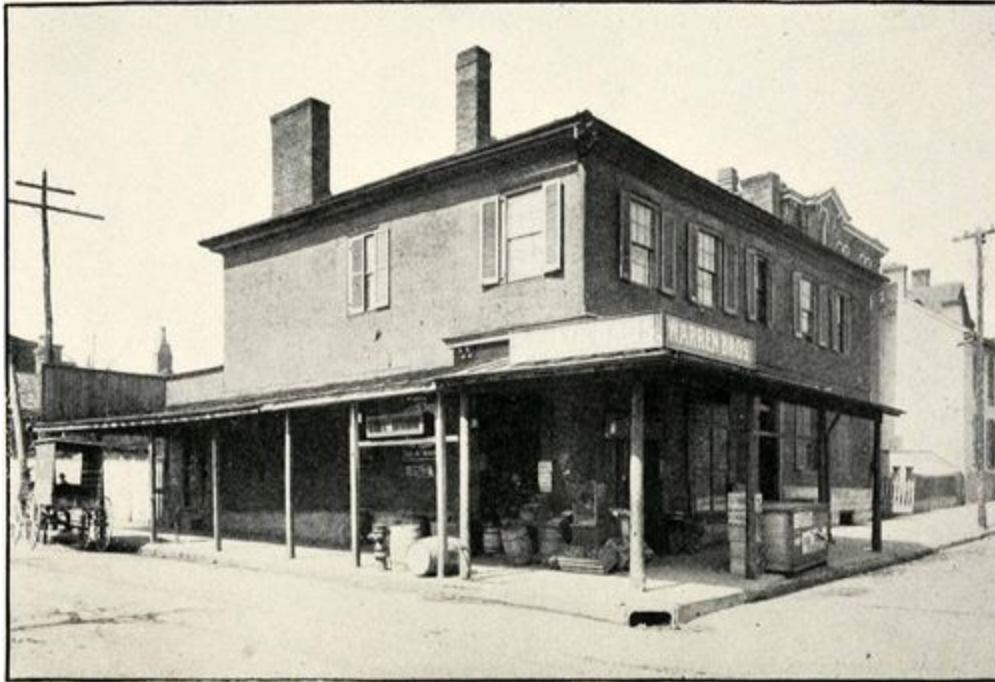
The masses of the Southern people, on the other hand, holding in proud remembrance the gallant soldier of the Mexican War and deeply

appreciative of his able advocacy of principles which they firmly believed to be sacredly just, regarded their chief magistrate as the sublimation of all the virtues inherent in the cause for which they fought. When the Confederacy collapsed, the indignities heaped upon its chief, his long imprisonment and the fact that he alone was selected for perpetual disfranchisement added the martyr's crown to the halo of the hero, thus creating in the South an almost universal mental attitude of affection and sympathy, which was as fatal to the ascertainment of the exact and unbiased truth of history as were the rancor and bitterness that prevailed at the North. That this prejudice and predilection still exist cannot be doubted. But time has plucked the sting of malice from the one and has dulled the romantic glamor of the other sufficiently to enable us to examine the events that gave birth to both with that calm and dispassionate criticism which subrogates every other consideration to the discovery of truth. I do not underestimate the difficulties that beset the self-imposed task, but to the best of my humble ability and free from every motive except that of portraying the impartial truth, I shall endeavor to delineate the life of the real Jefferson Davis.



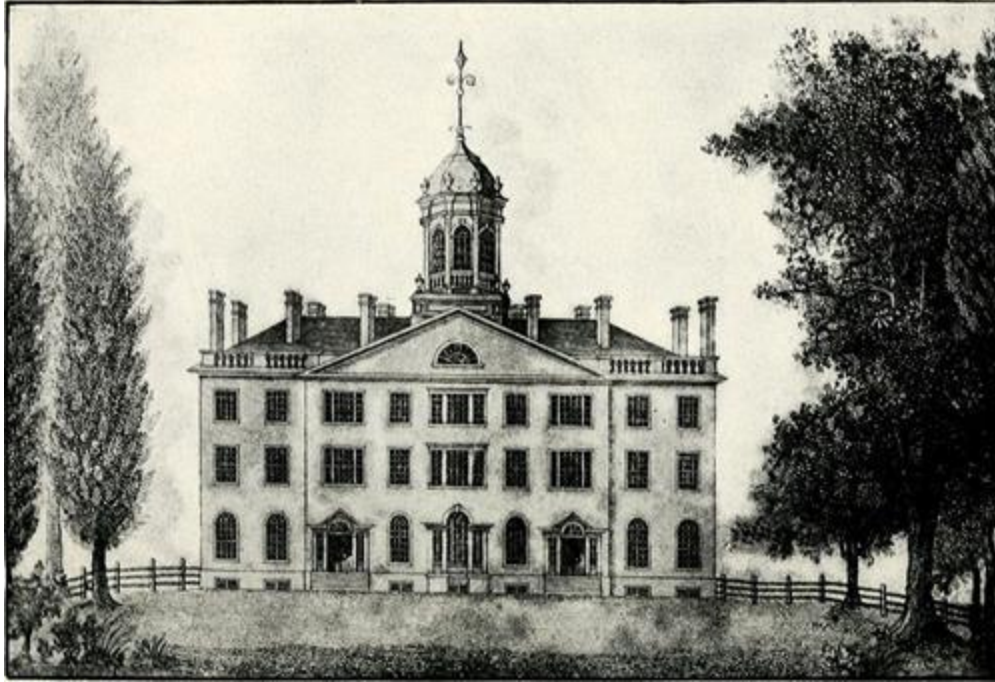
Jefferson Davis' Birthplace, at Fairview, Ky.

Contrary to the belief still somewhat prevalent, Jefferson Davis was not descended from a line of aristocratic progenitors, but sprang from the ranks of that middle class which has produced most of the great men of the world. About the year 1715 three brothers came to this country from Wales, and located in Philadelphia. The younger, Evan Davis, eventually went to the colony of Georgia and there married a widow by the name of Williams. The only child of that union, Samuel Davis, enlisted at the age of seventeen as a private soldier in the War of the Revolution. Later he organized a company of mounted men and at its head participated in most of the battles of the campaign that forced Lord Cornwallis out of the Carolinas. At the close of the war he married Jane Cook, a girl of Scotch-Irish descent, of humble station, but noted for strength of character and great personal beauty, and they settled on a farm near Augusta, Ga. In 1804 Samuel Davis removed with his family to southwestern Kentucky to engage in stock raising and tobacco planting, and there, in a modest farmhouse, which was then in Christian County and not many miles from the cabin where a few months later Abraham Lincoln opened his eyes upon the light of the world, Jefferson Davis was born, June 3, 1808. The spot is now in Todd County, and upon it stands the Baptist church of Fairview. While he was still an infant, the hope of there better providing for a numerous family caused his father to seek a new home on Bayou Teche in Louisiana. The country, however, proved unhealthful, and he remained but a few months. He finally bought a farm near Woodville in Wilkinson County, Miss., where he spent the remainder of his long life, poor, but respected and esteemed as a man of fine sense and sterling character.



Where Jefferson Davis Boarded While in Lexington

Jefferson Davis' first tuition was at a log schoolhouse, near his home, but the educational advantages of that time and place were so meager that when seven years old he was sent to a Catholic institution known as St. Thomas' College, and there, under the guidance of that truly good man and priest, Father Wallace, afterward Bishop of Nashville, his education really began. After some years in this school, he entered Transylvania University, at Lexington, Ky., then the principal collegiate institution west of the Alleghanies and famous many years thereafter as the alma mater of a distinguished array of soldiers and statesmen. In November, 1823, when in his senior year at Transylvania, through the efforts of his brother, Joseph Davis, he was appointed by President Monroe a cadet at West Point. The following year he entered that institution and after pursuing the customary course of four years, was graduated in July, 1828, with a very low class standing.



Transylvania College at Lexington

He was then in his twenty-first year. The period in which the principal foundations of character are laid had passed. What this important period of life had developed is, therefore, both interesting and instructive. Fortunately, this information is obtainable through evidence which is conclusive. More than a half score of his classmates at Transylvania and at West Point, who subsequently played important parts in the history of the country, have left us their impressions of Jefferson Davis during that period of his life. This information is supplemented by his instructors at both institutions. All of this testimony was recorded previous to the occurrence of any of the later events in his life which might have biased the judgment, and all of the witnesses corroborate each other. Without entering into any extended discussion of this evidence, we may safely conclude from it that in his youth he was one of those peculiarly normal characters whose well-ordered existence leaves but little material for the biographer. Few inequalities and no excesses are discoverable. He seems to have possessed one of those refined natures that abhor vice and immorality of every kind. While he made no pretensions to piety, and, apparently selected no associations with this view of avoiding contamination, his moral character

was without a blemish. Nor was he, as has been represented, haughty, impulsive and domineering, but, on the contrary, his nature seems to have been remarkably gentle and his bearing free from pretensions of every kind. He had opinions, and his convictions were strong, but he neither reached them hastily nor maintained them with arrogance. He was serious, somewhat reserved, always cheerful, sometimes gay. In his manner he was thoroughly democratic, but free from any suggestion of demagoguery. He was slow to anger, easily mollified, without malice and possessed in a remarkable degree that ingenuous and credulous nature which a long and eventful life never impaired and which was responsible, in no small degree, for many of the fatal mistakes of later years. If at this time he possessed any of those mental powers which later in life won the admiration even of his enemies, he gave no indication of the fact. He was an indifferent student, always somewhat deficient in mathematics, and never particularly proficient in any other branch, impressing those who knew him best as an ordinary youth of fair capacity and of about the attainments requisite to pass the examinations.

II. Service in the Army

Thus equipped by nature and education, Jefferson Davis was commissioned, upon leaving West Point, a second lieutenant, and was assigned to duty with the First Regiment of Infantry at Fort Crawford. The life of a second lieutenant on a frontier post in time of peace, unless under exceptional circumstances, is not likely to provide many incidents of a nature to illuminate his character, test his higher capacity or to greatly interest posterity. The circumstances in this case were not exceptional, and during the next seven years there was nothing in the career of Lieutenant Davis worthy of preservation that cannot be recorded in few words. It was the most barren period of his life. At Fort Crawford, at the Galena lead mines and at Winnebago he was employed in the police duty that our army at that time performed on the frontier which consisted chiefly of building forts and trying to preserve the peace between the Indians and encroaching settlers. In the performance of all of the duties to which he was assigned, he acquitted himself creditably and earned the reputation of being a conscientious, intelligent and efficient officer. At one time during this service an opportunity to win distinction seemed imminent. Black Hawk, driven to desperation by the continuous encroachment of the pioneers upon the hunting grounds of his people, formed what was then believed to be a powerful coalition of all of the Indian tribes of the Northwest. But the coalition soon fell to pieces, and the war, with its few slight skirmishes, turned out to be nothing more serious than an Indian raid, which was speedily terminated. An incident happened at the beginning of these troubles which, in the light of subsequent events, is perhaps, worthy of preservation. The governor of Illinois called out the state forces and mobilized them at Dixon. General Scott sent there from Fort Snelling two lieutenants of the regular army to muster them into service. One of them was Lieutenant Davis and the other was the future major who so gallantly sustained the fire of Beauregard's heavy guns against the old walls of Fort Sumter. Among the captains of the companies to be mustered in was one who was hardly the ideal of a soldierly figure. He was tall, awkward and homely, and was arrayed in a badly fitting suit of blue jeans, garnished with

large and resplendent brass buttons. He presented himself and was sworn in and thus probably the first time in his life that Abraham Lincoln ever took the oath of allegiance to the United States it was administered to him by Jefferson Davis.

Soon after the engagement at Stillman Run, Black Hawk and several of his more troublesome warriors surrendered to the United States forces and were sent as prisoners in charge of Lieutenant Davis to Jefferson Barracks. In his autobiography the old chief describes this journey in a way that leaves nothing to be guessed of the bitterness he felt, but he does not fail to express his appreciation of “the young white chief who alone treated me with the courtesy and consideration due to an honorable, vanquished enemy.” About a year after Lieutenant Davis’ return from this mission to Fort Crawford, an incident occurred, which, while unimportant in itself, was destined to produce far-reaching consequences. Col. Zachary Taylor was assigned to the command of the First Regiment, and with him came his family to Fort Crawford. His daughter, Miss Sarah Taylor, and Lieutenant Davis soon conceived an ardent affection for each other, and their marriage would have followed within the year had it not been prevented by Colonel Taylor. The cause of his opposition to the marriage has been the source of much speculation and of many absurd stories. The bare fact of the case is that Taylor’s opposition to Davis as a son-in-law was based solely upon the privations that confronted the wife of a soldier,—a not altogether unreasonable objection when we consider army life on the frontier at that time. Convinced of the fact, however, that his own family considered the reasons of his opposition unsound, he determined to find what, at least to him, would prove weightier ones, and proceeded to seek a quarrel with his daughter’s suitor. He found a pretext in a court martial, where, upon some trivial point, Davis voted against Taylor with a certain Major Smith. Taylor and Smith were not upon friendly terms, and thereupon the former flew into a violent rage, and in language which needed no additional strength to convince one that he fully deserved his sobriquet of Old Rough and Ready, he swore that Davis should never marry his daughter, and forbade him to enter his house as a visitor. In striking contrast to his intended father-in-law, Davis comported himself throughout this affair as a gentleman, and during the next two years sought in a manly way to reverse the irate old warrior’s decision. However, all of his efforts were unavailing, and finally convinced

that the task was a hopeless one, but resolved to remove the only substantial objection, he in the summer of 1835, resigned his commission in the army. A few weeks later he and Miss Taylor were married at the home of one of her aunts in Kentucky. But his new-found happiness was destined to a sad and untimely end, for in September of the same year, while visiting his sister near Bayou Sara, in Louisiana, both he and his bride were simultaneously stricken down with malarial fever and in a few days she succumbed to the disease. He was passionately devoted to his wife, and her death inflicted a blow from which he did not finally recover for many years. The winter following the death of his wife was spent in Havana and at Washington, and in the spring of 1836 he returned to Mississippi to take up with his brother, Joseph, the threads of a new life, the influence of which upon his future destiny has never been properly estimated.

III. His Life at Briarfield

Joseph Davis was in many respects a remarkable man. Educated for the bar, he abandoned the practice of law, after a successful career, when he was still a young man, and embarked in the business of cotton planting. He succeeded, acquired two large plantations known as “The Hurricane” and “Briarfield,” and soon became a wealthy man. But he was something more than a rich cotton planter. He was a man of great strength and force of character, a student possessed of a vast fund of information, and a clear and logical reasoner. He read much and thought deeply, if not always correctly, along the lines of political government and economic science. Always refusing to take an active part in politics, it was, nevertheless, a subject in which he was deeply interested. He was partially in sympathy with the principles of the democratic party, but in that academic, strict and literal construction of the Constitution and upon the question of state rights he occupied a position far in advance of that political organization—a position even beyond that assumed by Mr. Calhoun in his advocacy of the doctrine of nullification.

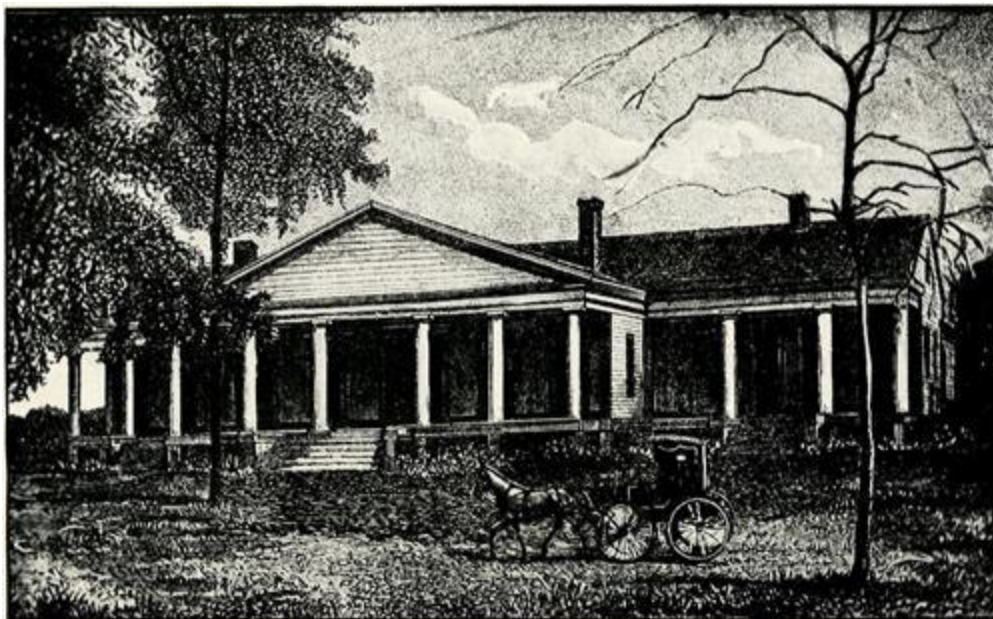


Jefferson Davis at Thirty-five

From this brother Jefferson Davis purchased “Briarfield,” and arrangements were made by which they lived together and jointly managed the plantations. Owning a large number of slaves, they inaugurated a policy for their management which is no less interesting in itself than for the results attained. It was based upon the political maxim of the elder brother that the less people are governed, the better and stronger and more law-abiding they become. All rules that involved unnecessary supervision and espionage of any kind were abolished. The slaves were placed upon honor and were left free to go and come as they pleased. Corporal punishment was only inflicted in cases involving moral turpitude, and only then after the trial and conviction of the accused by a jury of his peers, during the process of which all of the rules governing the production and admission of evidence observed in a court of justice, were scrupulously adhered to. The pardoning power alone was retained by the masters, and that they frequently exercised. Whenever a slave felt his services were more valuable to himself than they were to his master, he was allowed by the payment of a very reasonable

price for his time to embark in any enterprise he wished, the brothers counseling and advising him, frequently loaning him money and always patronizing him in preference to other tradesmen. A copy of a page from one of the books of a slave, bearing the date of Sept. 24, 1842, is before me, and upon it J. E. and J. Davis are credited with \$1,893.50. Another slave usually purchased the entire fruit crop of the two plantations, and there were still others who conducted independent and successful business operations. Some of those slaves in after years became respected and substantial citizens, one of them purchasing the plantations for something less than \$300,000, which had been offered by a white competitor.

In their intercourse with their slaves, the brothers observed the utmost courtesy. With the idea that it involved disrespect, they forbade the abbreviation of Christian or the application of nicknames to any of their servants. Jefferson Davis' manager, James Pemberton, was always received on his business calls in the drawing-room, and the dignified master met the equally dignified slave upon exactly the same plane that he would have met his broker or his lawyer. From the practice of this system two results followed: A large fortune was accumulated and the slaves became thoroughly loyal and devoted to their masters.



Briarfield, Jefferson Davis' Home

But, as great as must have been the influences of this life in forming the character of Jefferson Davis, still greater and of more importance, perhaps, must be regarded the rigorous mental training which he derived from it. During the period of their residence together, the time not required by business the brothers devoted to reading and discussions. Political economy and law, the science of government in general and that of the United States in particular, were the favorite themes. Locke and Justinian, Mill, Adam Smith and Vattel divided honors with the Federalist, the Resolutions of Ninety-Eight and the Debates of the Constitutional Convention. It was said they knew every word of the three latter by memory, and it is certain that year after year, almost without interruption, they sat far into the night debating almost every conceivable question that could arise under the Constitution of the United States.

IV. First Appearance in Politics

The first appearance of Jefferson Davis in politics would be hardly worthy of mention, if it were not for the fact that the event was used in after years to lend color to a baseless calumny. The Democratic party of Warren County nominated Mr. Davis for the Legislature in 1843, and although the normal Whig majority was a large one, he was defeated only by a few votes. Some years previous to that time the state had repudiated certain bank bonds which it had guaranteed, and in that canvass this question was an issue. Mr. Davis assumed the position that as the Constitution provided that the state might be sued in such cases, the question as to whether the bonds constituted a valid debt was one primarily for the courts rather than for the Legislature to decide. Referring to this controversy, General Scott in his autobiography says, "These bonds were repudiated mainly by Mr. Jefferson Davis;" and during the Civil War the same propaganda was urged in England by Robert J. Walker. The well-known imperfection of General Scott's knowledge on most matters political serves, in some measure, to palliate his error; but as General Walker was, at that time, a senator in Congress from Mississippi, it is difficult to believe that he erred through lack of information or that he was ignorant of the fact that when the Legislature finally refused to heed the mandate of the courts and provide for the payment of those obligations, Mr. Davis, as a private citizen, advocated a subscription to satisfy the debt, and that this very act was later used by the repudiators as their chief argument against his election to Congress.

Mr. Davis took a conspicuous part in the presidential campaign of 1844, and was chosen one of the Polk electors. Before this campaign he was but slightly known beyond his own county; but at its conclusion his popularity had become so great that there was a general demand in the ranks of his party that he should become a candidate for Congress in the following year.



The Room in the Briars in Which Jefferson Davis Was Married

On February 26, 1845, he was united in marriage to Miss Anna Varina Howell, of Natchez, and in the following month entered upon the canvass which resulted in his election by a large majority. He took his seat in the Twenty-Ninth Congress, December 8, 1845.

In that body were many men whose lives were destined to exert an influence upon his own fate in no small degree. Among them was that ungainly captain of volunteers to whom we have seen him administering the oath of allegiance at Fort Snelling, and a strong rugged, wilful man, who, in his youth, had been the town tailor of the little village of Greenville, in Tennessee.

Practically the only question involved in the campaign of 1844 was the admission of the Republic of Texas as a state of the Union. Mexico had declared that she would regard that act as tantamount to a declaration of war, and all parties in the Twenty-Ninth Congress now recognized the conflict as inevitable. Nor was it long delayed. One of President Polk's first official acts was to order General Taylor to proceed to the Rio Grande and defend it as the western boundary of the United States. Proceeding to a

point opposite Matamoras, he was there attacked by the Mexicans, whom he defeated, drove back across the river and shelled them out of their works on the opposite side.

In the war legislation that was now brought forward in Congress, Mr. Davis' military education enabled him to take a conspicuous part. His first speech seems to have left no doubt in the minds of the best judges that henceforward he was a power to be reckoned with. John Quincy Adams, it is said, paid the closest attention to this maiden effort, and at its conclusion shouted into the ear trumpet of old Joshua Giddings: "Mark my words, sir; we shall hear more of *that* young man!" But this speech, which was a reply to an attack made by Mr. Sawyer, of Ohio, on West Point, did something more than win the admiration of Mr. Adams. Contending for the necessity of a military education for those who conduct the operations of war, and ignorant that any member of either avocation was present, he asked Mr. Sawyer if he thought the results at Matamoras could have been achieved by a tailor or a blacksmith. Mr. Sawyer good-naturedly replied that, while he would not admit that some members of his craft might not have rivaled the exploits of General Taylor, that when it came to reducing things he himself preferred a horse shoe to a fort any day. Andrew Johnson, however, took the matter as a personal insult, and as long as he lived cherished the bitterest hatred for Mr. Davis.

V. Enters Mexican War

But as promising as Mr. Davis' congressional career began, it did not long continue. Soon after war was declared, he received notice of his election as colonel of the First Mississippi Regiment, and early in June resigned his seat in Congress and accepted that office. President Polk, learning of his resignation, sent for Mr. Davis and offered him an appointment as brigadier-general. There is no doubt that he greatly coveted that office, but such, even at that time, was his attachment to the doctrine of state rights, that, frankly informing the President of his conviction that such appointments were the prerogatives of the states, he declined the offer. Hastening to New Orleans, Colonel Davis joined his regiment, and at once inaugurated that course of training and discipline which, in a few months, made of it a model of efficiency.

In August he joined General Taylor's army just as it moved forward into Mexico. On Sept. 19, 1846, General Taylor with six thousand men reached the strongly-fortified city of Monterey, garrisoned by ten thousand Mexican regulars under command of the able and experienced General Ampudia. Two days later the attack began, and at the close of a sharp artillery duel, General Taylor gave the order to carry the city by storm. The Fourth Artillery, leading the advance, was caught in a terrific cross fire, and was speedily repulsed with heavy losses, producing the utmost confusion along the front of the assaulting brigade. The strong fort, Taneira, which had contributed most to the repulse, now ran up a new flag, and amidst the wild cheering of its defenders redoubled its fire of grape, canister and musketry, under which the American lines wavered and were about to break.



General Taylor and Colonel Davis at Monterey

Colonel Davis, seeing the crisis, without waiting for orders, placed himself at the head of his Mississippians, and gave the order to charge. With prolonged cheers his regiment swept forward through a storm of bullets and bursting shells. Colonel Davis, sword in hand, cleared the ditch at one bound, and cheering his soldiers on, they mounted the works with the impetuosity of a whirlwind, capturing artillery and driving the Mexicans pell mell back into the stone fort in the rear.

In vain the defeated Mexicans sought to barricade the gate; Davis and McClung burst it open, and leading their men into the fort, compelled its surrender at discretion. Taneira was the key of the situation, and its capture insured victory. On the morning of the twenty-third, Henderson's Texas Rangers, Campbell's Tennesseans and Davis' Mississippians the latter again leading the assault, stormed and captured El Diabolo, and the next day General Ampudia surrendered the city.

VI. The Hero of Buena Vista

Two months later, General Taylor again moved forward toward the City of Mexico, and on February 20 was before Saltilo. Santa Anna, the ablest of the Mexican generals, with the best army in the republic, numbering twenty thousand men, there appeared in front. Taylor could barely muster a fourth of that number, and for strategic purposes fell back to the narrow defile in front of the hacienda of Buena Vista, where, on the twenty-third, was fought the greatest battle of the war.

The conflict began early in the morning, and raged with varying fortunes over a line two miles long, until the middle of the afternoon when the furious roar of musketry from that quarter apprised General Wool that Santa Anna was making a desperate effort to break the American center. Colonel Davis was immediately ordered to support that point, and the Mississippians went forward at a double quick. As they came upon the field, the wildest disorder prevailed, and only Colonel Bowles' Indiana regiment held its ground. After trying in vain to rally the fugitives of a routed regiment, Colonel Davis speedily formed his own into line of battle and rapidly pushed forward across a deep ravine to the right of the Indianians just in time to meet the shock of a whole brigade, which the two commanders succeeded in repulsing with great gallantry.

But the battle was not over. Under cover of the smoke, Santa Anna's full brigade of lancers flanked the Americans, and now at the sound of their trumpets, the Mexican infantry advanced once more to the charge. Thus assailed on two sides by overwhelming numbers, the situation was truly critical, but Colonel Davis, forming the two regiments into the shape of a re-entering angle, awaited the assault.



The Charge of Colonel Davis' Regiment at Buena Vista

With flying banners and sounding trumpets the gaily caparisoned lancers came down at a thundering gallop until a sheet of flame from the angle wrapped their front ranks and bore it down to destruction. Quickly recovering, the survivors, with the fury of madmen, threw themselves again and again upon those stubborn ranks, which, now assailed on two sides, refused to give an inch, and met every onslaught with a withering fire, which soon so cumbered the ground with the dead that it was with difficulty the living could move over it.

At last utterly demoralized by the awful carnage, the Mexican lines broke and fled from the field. The day was over. Buena Vista was won, and Colonel Davis had accomplished a feat which, when Sir Colin Campbell imitated it at Inkerman two years later, he was sent by England to retrieve her fallen fortunes in India.

Notwithstanding the fact that Colonel Davis' right foot had been shattered early in the morning, he had refused to leave the field for aid, but now at the close of the action he fell fainting from his horse. The wound was a dangerous one, and as the surgeons were of the opinion that more than a

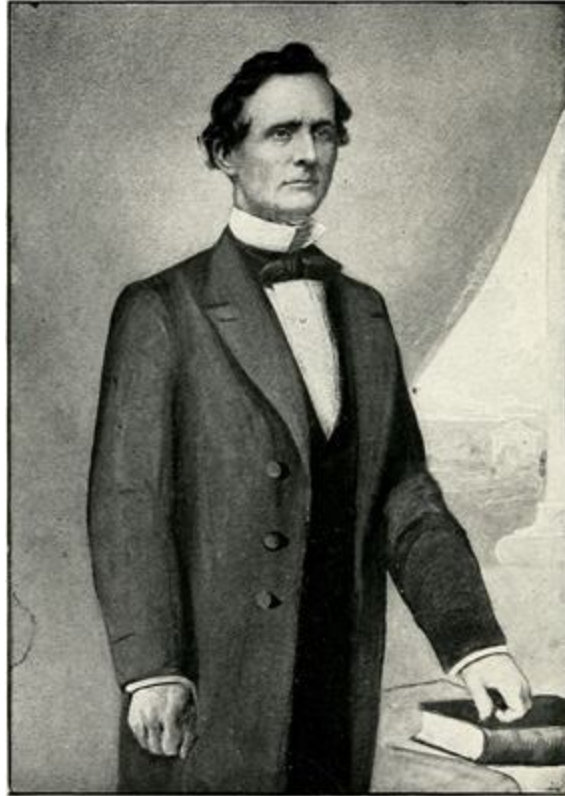
year must elapse before he could hope to walk, as soon as he was able to travel, General Taylor insisted on his going home, and thus closed his career in the Mexican War.

VII. Enters the Senate

This exploit at Buena Vista created the profoundest enthusiasm throughout the country, and the Legislatures of several states passed resolutions thanking him for his services. Governor Brown of his own state, in obedience to an overwhelming popular sentiment, a few weeks after his return, appointed Colonel Davis to fill a vacancy that had occurred in the Senate—an appointment which was speedily ratified by the Legislature.

When, in 1847, Mr. Davis took his seat in the Senate, that irrepressible conflict, inevitable from the hour that the Constitutional Convention of 1787 sanctioned slavery as an institution within the United States, had reached a crisis which was threatening the very existence of the Union. The Missouri Compromise prohibiting slavery north of 36° 30' had failed to sanction it in express terms south of that parallel, and while in 1820 probably no one would have denied that this was the logical and obvious meaning of that measure, such was not the case thirty years later. The Abolitionists had opposed the annexation of Texas, believing, as Mr. Adams declared, that such an event would justify the dissolution of the Union.

In finally accepting Texas with bad grace, they served notice that it was their last concession. Therefore when the application of the Missouri Compromise to the vast territory acquired from Mexico would have given over a large portion of it to slavery, they brought forward the Wilmot Proviso, a measure, the effect of which was to abrogate the Missouri Compromise in so far as it affected slavery south of that line, while leaving its prohibition as to the north side in full force.



Jefferson Davis as United States Senator in 1847

Mr. Davis participated in the discussion of these questions and at once became the ablest and most consistent of those statesmen who, contending for the strict construction of the Constitution and the broadest principles of state sovereignty, sought to prevent Congress from violating the one by infringing on the prerogatives of the other. Holding that the Constitution sanctioned slavery, that Congress had specified its limits, that the territories belonged in common to the states, he contended that the South could not accept with honor anything less than that the Missouri Compromise extended to the Pacific Ocean.

Reasoning from these premises, his speeches were masterpieces of logic, and whatever one may think of their philosophy, all must agree that they were among the greatest ever delivered in any deliberative body. Had the leaders of his party stood with him in that great battle, they would have been able to force some definite legislation which would have postponed the Civil War for many years—possibly beyond a period when the operation

of economic laws might have effected the abolition of slavery as the only salvation of the South—but Henry Clay’s dread of a situation that endangered the Union prompted him to bring forward his last compromise measures, which he himself declared to be only a temporary expedient. Calhoun, equally strong in his love for the Union, anxious to preserve it at all costs, abandoned his former position, and against the warnings of Jefferson Davis, soon to become prophetic, his party accepted the measure which, as he declared, guaranteed no right that did not already exist, while abrogating to the South the benefits of the Compromise of 1820.

VIII. Becomes Secretary of War

With temporary tranquillity restored, Mr. Davis soon afterward resigned his seat in the Senate to become a candidate for governor of his state—a contest in which he was defeated by a small plurality. He retired once more to Briarfield, and there is little doubt that he at that time intended to abandon public life. However, in 1853, he yielded to the insistence of President Pierce, and reluctantly accepted the portfolio of war in his cabinet.

Only a brief summary is possible, but if we may judge by the reforms inaugurated, the work accomplished during the four following years, Jefferson Davis must be considered one of our greatest secretaries of war. The antiquated army regulations were revised and placed upon a modern basis, the medical corps was reorganized and made more efficient, tactics were modernized, the rifled musket and the minie ball were adopted, the army was increased and at every session he persistently urged upon Congress the wisdom of a pension system and a law for the retirement of officers, substantially as they exist at present.

But more enduring and farther reaching in beneficent results were those great public works originated or completed under his administration, prominently among which may be mentioned the magnificent aqueduct which still supplies Washington with an abundance of pure water; the completion of the work on the Capitol, which had dragged for years; and the founding of the Smithsonian Institute, of which he was, perhaps, the most zealous advocate and efficient regent.

Transcontinental railways appealed to him as a public necessity. He therefore had two surveys made and collected the facts concerning climate, topography and the natural resources of the country, which demonstrated the feasibility of the vast undertaking, which was subsequently completed along the lines and according to the plans that he recommended.

From his induction into office he set at naught the spoils system of Jackson, and may very justly be regarded as a pioneer of civil service reform, for he altogether disregarded politics in his appointments, and when remonstrated

with by the leaders of his party, informed them that he was not appointing Whigs or Democrats, but servants of the government who, in his opinion, were best qualified for the duties to be performed. The same principle he adhered to in matters of the greatest moment, as he demonstrated in the Kansas troubles. A state of civil war prevailed between the advocates and opponents of slavery, and it could not be doubted where his own sympathies were in the controversy. From the nature of the case, the commander of federal troops in Kansas must be armed with practically dictatorial powers. The selection remained altogether with himself, and he sent thither Colonel Sumner, an avowed abolitionist, but an officer whose honor, ability and judgment recommended him as the best man for the difficult duty.

How the absurd story ever originated that Mr. Davis used the power of his great office to weaken the North and prepare the South for warlike operations, is inconceivable to the honest investigator of even ordinary diligence. No arms or munitions of war could have been removed from one arsenal to another or from factory to fort without an order from the Secretary of War. Those orders are still on record, and not one of them lends color to a theory which seems to have been adopted as a fact by Dr. Draper, upon no better proof than that afforded by hearsay evidence of the most biased kind. In fact, arsenals in the South were continuously drawn upon to supply the Western forts during his term of office, and at its close, while all defenses and stores were in better condition than ever before, those south of the Potomac were relatively weaker than in 1853.



Jefferson Davis as Secretary of War

Other less serious charges are equally baseless, and the historian who would try Mr. Davis upon the common rules of evidence must conclude that his administration was not only free from dishonor but was characterized by high ability and unquestioned patriotism—a verdict strengthened by the fact that contemporaneous partisan criticism furnished nothing to question such a conclusion.

IX. He Re-enters the Senate

When, in 1857, Mr. Davis was again elected to the Senate, the Compromise of 1850 had already become a dead letter, as he had predicted that it would. The anti-slavery sentiment had, like Aaron's rod, swallowed all rivals, and party leaders once noted for conservatism, had resolved to suppress the curse, despite the decision of the Supreme Court statute, of law, of even the Constitution itself. Those who have criticised Mr. Davis most bitterly for his attitude at that time have failed to appreciate the fact that he then occupied the exact ground where he had always stood.

Others had changed. He had remained consistent. He had never countenanced the doctrine of nullification; he had always affirmed the right of secession. Profoundly versed, as he was, in the constitutional law of the United States, familiar with every phase of the question debated by the Convention of 1787, his logical mind was unable to reach a conclusion adverse to the right of a sovereign state to withdraw from a voluntary compact, the violation of which endangered its interests. He believed that the compact was violated by the repeal of the Missouri Compromise; he felt that it was being violated now, but as in 1850 he had declared that nothing short of the necessity of self-protection would justify the dissolution of the Union, he now pleaded with the majority not to force that necessity upon the South. Secession he frankly declared to be a great evil, so great that the South would only adopt it as the last resort; but at the same time he warned the abolitionists that if the guarantees of the Constitution were not respected, that if the Northern states were to defy the decrees of the Supreme Court favorable to the South, as they had done in the Dred Scott decision, that if his section was to be ruled by a hostile majority without regard to the right, the protection thrown around the minority by the fundamental law of the land, that the Southern states could not in honor remain members of the Union, and would therefore certainly withdraw from it.

He undoubtedly saw the chasm daily growing wider, and had he possessed that sagacious foresight, that profound knowledge of human nature, in

which alone he was lacking as a statesman of the first order, he would have realized then, as Abraham Lincoln had before, that the die was cast and that the Union could not longer endure upon the compromises of the Constitution which had implanted slavery among a free, self-governing people, a majority of whom were opposed to it. But there is no recorded utterance of Jefferson Davis, no act of his, that would lead one to believe that he had despaired of some adjustment of matters, or that secession was wise or desirable, until after the nomination of Mr. Lincoln. Then, for the first time, he declared before a state convention at Jackson, Miss., that the Chicago platform would justify the South in dissolving the Union if the Republican party should triumph at the coming election. But he did not expect that triumph. Shortly previous to that speech, he had introduced resolutions in the Senate embodying the principles of the constitutional pro-slavery party.

They affirmed the sovereignty of the separate states, asserted that slavery formed an essential part of the political institutions of various members of the Union, that the union of the states rested upon equality of rights, that it was the duty of Congress to protect slave property in the territories, and that a territory when forming a constitution, and not before, must either sanction or abolish slavery. The resolution passed the Senate, and Mr. Davis hoped to see it become the platform of a reunited party, which would have meant the defeat of the Republican ticket and a consequent postponement of the war.

The foregoing facts alone make ridiculous the assertions of Mr. Pollard that during this Congress Jefferson Davis, with thirteen other senators, met one night in a room at the Capitol, and perfected a plan whereby the Southern states were forced into secession against the will of the people thereof.

What the plan was, how it was put into operation so as to circumvent the will of the people of eleven states who more than a year later decided the question of secession by popular vote, why Mr. Davis later introduced the above resolution and why he worked so zealously thereafter to prevent the threatened disruption and why he sought to induce the Charleston Convention to adopt his resolution as the principles of the party, Mr. Pollard does not attempt to explain. In fact, any rational explanation would be impossible, for at every point the evidence refutes the allegation.

Then, again, those who, like Mr. Pollard, have sought to saddle the chief responsibility of secession upon Jefferson Davis have overlooked the fact that while not an avowed candidate, he nevertheless hoped to be the nominee of his party in 1860 for the presidency, and that much of his strength lay in Northern states, as Massachusetts demonstrated by sending him a solid delegation to the Charleston Convention. His conduct during his last year in the Senate is consistent with this ambition, but the ambition is wholly inconsistent with the theory that he had long planned the destruction of the Union. The truth is that the impartial historian must conclude from all of his utterances, from his acts, from the circumstances of the case, that in so far from being the genius and advocate of disunion, he deprecated it and sought to prevent it, until political events rendered certain the election of Mr. Lincoln. Then, sincerely believing the peculiar institutions of the South to be imperiled, and never doubting the right of secession, he advocated it as the only remedy left for a situation which had become intolerable to the people of his section.

His advocacy, however, was in striking contrast to that of many of his colleagues. Always free from any suggestion of demagoguery, always conservative, his utterances on this subject were marked with candor and moderation. Nor did the ominous shadows that descended upon the next Congress disturb his equanimity or unsettle his resolution to perform his duty as he saw it. For days the impassioned storm of invective and denunciation raged around him, but he remained silent. At last the news came that his state had seceded. He announced the event to the Senate in a speech, which in nobility of conception has probably never been surpassed. He defined his own position and that of his state, and as he bade farewell to his colleagues, even among his bitterest opponents there was scarcely an eye undimmed with tears, and whatever others thought in after years, there was no one in that august assemblage who did not accord to Jefferson Davis the meed of perfect sincerity and unblemished faith in the cause which he had espoused.

X. Still Hoped to Save the Union

On the evening of the day Mr. Davis retired from the Senate, he was visited by Robert Toombs of Georgia, who informed him that it was reported from a trustworthy source that certain representatives, including themselves, were to be arrested. He had intended to leave the capital the following day, but changed his plans to await any action the government might take against him.

To his friends he declared the hope that the rumor might be well founded, for should arrests be made, he saw therein the opportunity to bring the question of the right of a state to secede from the Union before the Supreme Court for final adjudication. Nothing of the kind happened, and after waiting for about ten days, Mr. Davis left Washington.

During his stay he freely discussed the situation with the leading Southern statesmen who called upon him. The general opinion was the first result of secession, which most of them assumed to be final, must be the formation of a new federal government, and the consensus of opinion designated Mr. Davis as the fittest person for the presidency. On the first proposition he did not agree with his colleagues. He expressed the belief that the action of the states in exercising the right of secession would serve to so sober Northern sentiment that an adjustment might be reached, which, while guaranteeing to the South all of the rights vouchsafed by the Constitution, would still preserve the Union. He therefore sought to impress upon them—especially the South Carolina delegation—the necessity of moderation, the unwisdom of any act at that time which might render an adjustment impossible.

The second proposition he refused to consider at all, and begged those who might be instrumental in the formation of a new government, if one must be created, not to use his name in connection with its presidency. That he at this time entertained a sincere desire for the preservation of the Union can be doubted by no one familiar with his private correspondence. In a letter dated two days after his resignation from the Senate he defends the action

of his state, it is true, but at the same time deplores disunion as one of the greatest calamities that could befall the South.

In another letter written three days later, he uses this significant language: "All is not lost. If only moderation prevails, if they will only give me time, I am not without hope of a peaceable settlement that will assure our rights within the Union." That he did not abandon that hope until long afterward, that he clung to it long after it became a delusion, is very probable, as we shall see.

Nothing could be farther from the truth than the theory so often advanced that presidential ambition was responsible for Mr. Davis' attitude on the question of secession. This I have indicated in the last chapter. The truth of this position is established if he were sincere in his declarations that he did not covet the honor of the presidency of the new government. Those declarations were made to the men who, of all others, could further his ambition; they knew his stubbornness of opinion, understood how likely it was that he would never abandon that or any other position; there were other aspirants whom he knew to be personally more acceptable to a majority of these statesmen, and his attitude, of course, released them from any responsibility imposed by popular sentiment in his favor in the South. If one is still inclined to accept all this, however, as another instance of Cæsar putting the crown aside, the question arises, Why did he assume the same attitude with those who possessed no power to influence his fortunes? Why in his letters to his wife, to his brother, to his friends, in private life, did he express the strongest repugnance to accepting that office should it be created and offered? But even stronger evidence that he did not seek or want it is afforded by another circumstance. Mississippi, in seceding from the Union, had provided for an army. The governor had appointed him to command it, with the rank of major-general. In the event of war, that position opened up unlimited possibilities in the field, which was exactly what he desired; for, unfortunately, he then and always cherished the delusion that he was greater as a soldier than he was as a statesman. All of this is consistent with his sincerity—inconsistent with any other reasonable theory.

Mr. Davis must also be acquitted of the charge made by no inconsiderable number of the Southern people that he first failed to anticipate war and later

underestimated the extent and duration of the approaching conflict. On his way from Washington to Mississippi, he made several speeches. All of them were marked by moderation, but to the prominent citizens who on that journey came to confer with him, he declared in emphatic terms that the United States would never allow the seceded states to peacefully withdraw from the Union, and warned them that unless some adjustment were effected, they must expect a civil war, the extent, duration and termination of which no one could foresee.

At Jackson he reiterated those views, along with a hope for reconciliation, in a speech delivered before the governor and Legislature of his state. Peaceful adjustment he declared not beyond hope, yet if war should come, he warned them that it must be a long one, and that instead of buying 75,000 stands of small arms, as proposed, that the state should only limit the quantity by its capacity to pay. Those views, it may be here remarked, were not coincided with by his own state or the people of the South generally. They were far in advance of their representatives on the question of secession, but the belief was generally prevalent at even a much later date that no attempt would be made to coerce a seceding state.

XI. President of the Confederacy

The convention of the seceding states met at Montgomery, Feb. 4, 1861, and proceeded to adopt a constitution as the basis for a provisional government. The work was the most rapid in the history of legislative proceedings, being completed in three days. With the exceptions of making the preamble read that each state accepting it did so in "its sovereign and independent capacity," fixing the president's and vice-president's term of office at six years and making them ineligible for re-election, prohibiting a protective tariff, inhibiting the general government from making appropriations for internal improvements, requiring a two-thirds vote to pass appropriation bills and giving cabinet officers a seat, but no vote, in Congress, the Confederate constitution was, practically, a reaffirmation of that of the United States.

It was adopted on the eighth, and the provisional government to continue in force one year, unless sooner superseded by a permanent organization, was formally launched upon the troubled waters of its brief and stormy existence. The following day, an election was held for president and vice-president, the convention voting by states, which resulted on the first ballot in the selection by a bare majority of Jefferson Davis and Alexander H. Stephens of Georgia. Mr. Davis, as we have seen, was not a candidate. He was not in, nor near, Montgomery at the time, and took no part, by advice or otherwise, in the formation of the new constitution.

His selection over Mr. Toombs was the result of a single set of circumstances. Mr. Davis' military education, his experience in the field, his services as secretary of war, a widespread popular belief in his ability as a military organizer, and his known capacity as a statesman in times of peace, all marked him as the fittest man for a place which evidently required a combination of high qualities. Had Mr. Toombs possessed either military education or experience, there is scarcely a doubt that he would have been chosen.



The Capitol at Richmond

The news of his election reached Mr. Davis while working in his garden, and is said to have caused him genuine disappointment and grief. That the convention was uncertain of his acceptance is indicated by the fact that with the notification was sent an earnest appeal to consider the public welfare, rather than his own preferences, in considering the offer of the presidency. Upon this ground he based his action in accepting the office and hastening to Jackson, he resigned his position in the state army, expressing the hope and belief that the service would be but temporary.

All along the route to Montgomery, bands and bonfires, booming cannon and the peals of bells heralded his approach, and vast concourses greeted him at every station.

What purported to be an account of this journey was printed in the leading papers of the North, which pictured Mr. Davis as invoking war, breathing defiance and threatening extermination of the Union. Nothing of the kind, however, occurred. The speeches actually delivered were moderate, conservative and conciliatory. So much so, in fact, that they were

disappointing to his enthusiastic audiences, and there are yet living many witnesses to the frequent and repeated declaration of the fear that “Jeff. Davis has remained too long amongst the Yankees to make him exactly the kind of president the South needs.”

XII. His First Inaugural

Monday, Feb. 18, 1861, there assembled around the state capitol at Montgomery such an audience as no state had ever witnessed—as perhaps none ever will witness. Statesmen, actual and prospective; jurists and senators; soldiers and sailors; officers and office-seekers, the latter, no doubt, predominating; clerks, farmers and artisans; fashionably attired women in fine equipages decorated with streamers and the tri-colored cockades; foreign correspondents—in fact, representatives from every sphere and condition of life, each eager to witness a ceremonial which could never occur again.

At exactly one o'clock Mr. Davis and Mr. Stephens appeared upon the platform in front of the capitol, and when the mighty wave of applause had subsided, Howell Cobb, President of the Constitutional Convention, administered to them the oath of office. Then in that peculiarly musical voice which had never failed to charm the Senate in other days, a voice audible in its minutest inflections to every one of the vast throng, Mr. Davis delivered his inaugural address.

Strangely enough, both sections of the divided country then and thereafter attached a widely varying value to the address. It was so simple, clear and direct that it is amazing two interpretations should have been placed upon it. As an exposition of the causes leading to secession, it was a masterpiece. It is impossible to read it today without feeling that in every sentence it breathed a prayer for peace.

Viewed in connection with the events that produced it, as the first official advice of the chief executive of a new nation beset with the most stupendous problems, confronted by the gravest perils, it certainly added nothing to Mr. Davis' reputation as a statesman. Beyond the declaration that the Confederacy would be maintained, a desire for peace and freest of trade relations with the United States, he outlined no policies and offered neither suggestions nor advice.

Mr. Davis, now more than perhaps any other Southern statesman, should have realized that “the erring sisters” would not be permitted to depart in peace, and yet beyond the barest general statement that an army and a navy must be created, he dismissed the matter, to plunge into an academic discussion of the prosperity of the South and the *moral sin* that would be committed by the United States should it perversely and wickedly disturb this condition and curtail the world’s supply of cotton!

The question of revenue was, of course, of paramount importance, but no idea, no plan, no suggestion was offered along that line. The more one studies that remarkable production, the more puzzling it becomes, if we assume that Mr. Davis was altogether sincere in his declaration that the severance was final and irremediable.

If he were not, if he still hoped for some adjustment that would reunite the severed union, one may readily understand why he refrained from assuming the vigorous attitude that the occasion demanded, but which might have placed compromise beyond the pale of possibility. The significant omissions were not compatible with Mr. Davis’ well-known views of official duty. Nor is the matter in any way explained by assuming that as Congress was charged with the performance of all of these important matters, that it was not Mr. Davis’ duty to suggest plans and methods. His office invested him with those powers and he was elected to it for the express reason that he was supposed to be eminently qualified in all practical administrative and legislative details, especially those of a military nature.

While Mr. Davis must be absolved from the charge that his cabinet appointments were the result of favoritism, they were, nevertheless, for the most part, unfortunate. The portfolio of the treasury, undoubtedly the most important place in the cabinet, was intrusted to Mr. Memminger, of South Carolina, an incorruptible gentleman of high principles and mediocre ability, a theorist, devoid of either the talents or experience that would have fitted him for the difficult place. Toombs, Benjamin and Reagan were better selections. The others were men honest, sincere of purpose, but little in their antecedents to recommend them for the particular positions which they were called upon to fill. With at least two of them, Mr. Davis was not

previously personally acquainted, and political considerations probably secured their appointment.

XIII. Delays and Blunders

One of the president's first official acts was to appoint Crawford, Forsyth and Roman as commissioners "to negotiate friendly relations" with the United States. They were men of different political affiliations, one being a Douglas Democrat, one a Whig and the other a lukewarm secessionist. All were conservative and shared fully in the president's desire for peace on any honorable terms.

But while trying to secure peace, Mr. Davis was not insensible to the necessity of an army, and on this point the first difference arose between him and Congress. Beyond the small and inefficient militia maintained by the different states, there was neither army nor guns, and ammunition with which to equip one. He therefore urged Congress to provide for the purchase of large quantities of warlike material, but that body, infatuated with the idea that there would be no war, proceeded to debate whether it were advisable to add anything to the stock owned by the states, which at that time was insufficient to arm one-thirtieth of the population subject to military duty.

Mr. Toombs once assured the writer that after the loss of valuable time it was decided to send an agent abroad, it was proposed to purchase but eight thousand Enfield rifles and that it was with the utmost difficulty that he prevailed upon the government to increase the order to ten thousand.

From this circumstance the extent of the infatuation may be inferred. The peace delusions of Congress seem to have been fully shared by the secretary of the treasury.

At the time of the inauguration of the Confederate government and for months thereafter, merchants and banks of the South held quantities of gold, silver and foreign exchange which they were anxious to sell at very nearly par for government securities, and yet this opportunity was neglected. But as grave as that blunder was, it was, nevertheless, insignificant when compared to another. There were then in the South about three million bales

of cotton which the owners would have sold for ten cents a pound in Confederate money.

The president accordingly suggested to Mr. Memminger that the government buy this cotton, immediately ship it to Europe and there store it to await developments. His theory was that if war should come, it must be a long one and that in less than two years this cotton would be worth from seventy to eighty cents a pound, which would then give the government assets, convertible at any time into gold, of at least a billion dollars. The plan was sound and feasible, for a blockade did not become seriously effective until more than a year after the beginning of war, and we know the price of cotton went even beyond Mr. Davis' figures. The secretary, however, engrossed in the puerile plans of fiat money, which the history of almost any revolution, from the days of Adam, should have proved a warning, turned a deaf ear to this suggestion which at once combined profound statesmanship and admirable financial sagacity, and the matter came to naught.

But this was only one of the many serious blunders and lapses which retarded the adequate preparation which all at a later day recognized should have been made by the Confederacy.

When the stern logic of events portrayed this neglect as the parent of failure, the spirit of criticism emerged even in the South and failed not to spare Mr. Davis. But these critics have, for the most part, overlooked the very important fact that it was impossible for the president to accomplish a great deal without the co-operation of his Congress.

The states' rights ideas, we must remember, were the predominant ones entertained by the people and their representatives, and that they, more than anything else, paralyzed action, promoted delays and fostered confusion, can admit of no doubt. The forts, arsenals, docks and shipyards belonged to the states, and although Mr. Davis early in his administration urged that they be ceded to the general government, it was not until war became a certainty that a reluctant consent was yielded and this most necessary step consummated. Another weakness lay in the fact that the provisional army, in so far as one existed, was formed on the states' rights plan.

That is to say, it was composed of volunteers, armed and officered by the states, who alone possessed power over them. Any governor might at any time without any reason withdraw the troops of his state from the most important point at the most critical moment, without being answerable to any power for his action. These are but two examples of many that might be adduced, but they will serve to demonstrate how impossible it was for any man, whatever his influence or position, to make the preparations demanded by the situation while hedged about by such fatal limitations. And, whatever Mr. Davis' failures may have been in this regard, they are chargeable to the system adopted by the people themselves, rather than to any serious derelictions on his part.

XIV. The Bombardment of Sumter

The bulk of the Confederate army was mobilized at Charleston, where, if hostilities were to occur, they were likely to begin, owing to the fact that a Federal garrison still held Fort Sumter. Mr. Davis, realizing the critical nature of this situation, impressed upon the peace commissioners that, failing to secure a treaty of friendship, they were to exhaust every effort to procure the peaceful evacuation of Sumter.

The history of those negotiations is too well known to need repetition here. Mr. Seward's disingenuous methods served their purpose of inspiring a false hope of peace, and it is very probable that Mr. Davis suspected no duplicity until fully advised of the details and destination of the formidable fleet that was being fitted out at New York. When it sailed, and not before, ended his long dream of peace.

The attempt to reinforce a stronghold in the very heart of the Confederacy was express and unmistakable notice to the world that the United States did not propose to relinquish its sovereignty over the seceded states. To allow the peaceful consummation of the attempt was to acquiesce in a claim fatal to the existence of the new government. Therefore, if the Confederacy was to be anything more than a futile attempt to frighten the Federal government into granting concessions, the time had now come to act. The president did not hesitate. General Beauregard was instructed to demand the surrender of Sumter, and, failing to receive it, to proceed with its reduction.

The story of that demand and its refusal, of how at thirty minutes past four o'clock on the morning of April 12, 1861, the quiet old city of Charleston was aroused from its slumbers by that first gun from Fort Johnston "heard around the world," and how the gallant Major Anderson, Mr. Davis' old comrade in arms of other days, maintained his position until the walls of the fortifications were battered down and fierce fires raged within, are all history, and need no further comment or elaboration at this time.



Interior of Fort Sumter After the Surrender

There as at Matanzas in the beginning of the war with Spain, the first and only life sacrificed was that of a mule. When Mr. Davis learned this, he exclaimed: "Thank heaven, nothing more precious than the blood of a mule has been shed. Reconciliation is not yet impossible." But he was hardly serious in that declaration. The die was now cast, and for the first time the North realized that the South was in earnest—the South, that war was inevitable.

Mr. Lincoln's call for volunteers to coerce the seceding states aroused a perfect frenzy of patriotism throughout the South, and the full military strength of the Confederacy could have been enlisted in thirty days, but it is hardly necessary to say that a government which had reluctantly ordered ten thousand rifles was in no position to take advantage of that opportunity.

The president immediately called an extra session of Congress. It convened on April 29, and received his special message, which was in marked contrast to his inaugural. There were no dissertations on agriculture and

morality now, but with that forceful perspicacity which usually characterized his utterances, he marked out sensibly and well what should be done, and suggested definite methods. This message was the first utterance, public or private, which clearly demonstrated that his dream of compromise was over.

His recommendations embraced the creation of a regular army upon a sane plan, the immediate purchase of arms, ammunition and ships, the establishment of gun factories and powder mills, and a number of other subjects, which leave no doubt that he saw the situation in its true proportions, and was resolved to use the resources of the Confederacy to meet it. That these resources were meager when compared with those of his powerful adversary, is beyond question. But neither in point of wealth nor population were the odds so great against the South as those over which Napoleon twice triumphed, or those opposed to Frederick the Great in a contest from which he emerged triumphant; and the conclusion so freely indulged in of late years that the Confederacy was foredoomed from the beginning would seem to rest rather upon an accomplished fact than upon sound reasoning, if in the beginning the resources of the South had been used to the best advantage. That they were not, was known by every statesman and general of the Confederacy whose achievements entitle his opinion to consideration. But it is eminently unfair to seek to saddle all or the greater part of this failure upon Mr. Davis, as has been attempted, in some cases, by the delinquents who themselves, contributed largely to that result. Some of the causes of that failure we have seen. Another, and perhaps the most potent cause, the writer believes, may be traced to conditions which have been very generally overlooked.

XV. Conditions in the South

Previous to the Civil War, the large slaveholders constituted as distinct an aristocracy as ever existed under any monarchy. Educated in Northern colleges and the universities of Europe, it produced a race of men who in many respects has never been surpassed by those of any country in the world. It was small, but it was the governing class of the South, in which the people, except those in the more northerly section, placed implicit confidence.

A majority of the latter were not slaveholders nor were they in sympathy with slavery, and at heart they were unfriendly to the governing class, its policies and politics—a fact which was responsible for giving to the Union from the seceded states almost as many soldiers as enlisted for the Confederacy.

The educated class, of course, understood all sections of the country, but at this time it is almost impossible to understand how little the rank and file of the Southern people knew of the North, its resources and, above all, of the motives that actuated its citizens. In a word, two sections of a country separated by no natural barrier, speaking the same language and in the main living under the same laws, were to all intents and purposes as much foreigners as though a vast ocean had divided them.

Nursed upon the theories of state sovereignty, the Southern people could not at first understand how a seceding state could be coerced, and when that delusion was dispelled, their attitude was one of angry contempt. From colonial days, conditions in the South had been such as to develop courage, resourcefulness and self-reliance in the individual. The idea of coercion was to them ridiculous. Numerically inferior as they were, they felt self-sufficient. So much so, in fact, that they took no trouble to conciliate that class before referred to which, while out of sympathy with them on slavery, were held by other ties which at first inclined them rather to the South than to the North. What mattered it? Let them join the Yankees, and they would whip both. This same confidence saw in the approaching conflict a short

affair, and among this people, naturally as warlike as the Romans under the republic, there grew up the widespread fear that the war would not last long enough for all to take a hand. Valorous the attitude undoubtedly was, but at the same time the spirit that gave it birth was fatal to that careful preparation which alone would have insured a chance for success.



Henry Clay Addressing the Senate on the Missouri Compromise

This spirit invaded even the Congress, where strong opposition developed to long enlistments. In fact, this body seems to have seriously believed that the volunteers would be sufficient to maintain the struggle, and while Mr. Davis saw the error and danger involved in both theories, the most that could be secured was legislation which provided for a twelve months' enlistment. This, in all truth, was bad enough, but it is doubtful if it was so pernicious as the methods provided for fixing the rank of officers by the relative position formerly held by them in the United States army—a

measure which from its inception proved a perfect Pandora's box of discord and dissension.

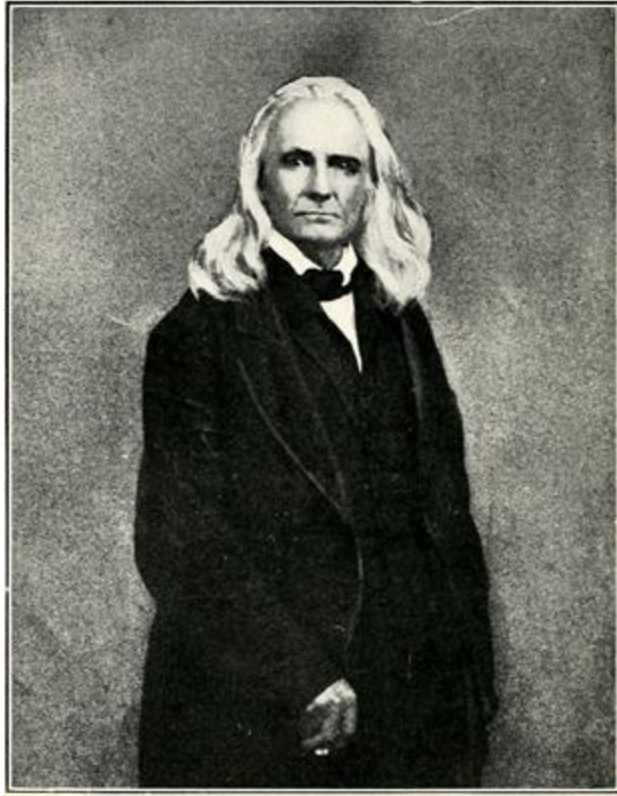


XVI. The First Battle

The next step of Congress was unquestionably a fatal blunder. This was the removal of the capitol from Montgomery to Richmond. From the very nature of the situation, it was evident that the chief goal of the enemy would be the capture of the capital and the moral effect of such a result must prove extremely disastrous, by elating the North, discouraging the South and impairing confidence abroad.

Left at Montgomery, it would have compelled the enemy to operate from a distant base of supplies, necessitating his keeping open lines of communication eight hundred miles long, while it would have liberated to be used as occasion demanded, a magnificent army which was constantly required for the defense of Richmond. Located as that place is, within little more than one hundred miles of the enemy's base, upon a river which permitted the ascent of formidable war crafts and within a short distance of a strong fortress on a fine harbor, it was a constant invitation for aggressions which required all of the energies and most of the resources of the South to meet and defend.

When in May the president reached Richmond, its defense was already demanding attention. The states had sent forward troops to the aid of Virginia and these were divided into three armies. One of these was posted at Norfolk. Another, under General Joseph E. Johnston, guarded the approach to the Shenandoah Valley, and the third, under General Beauregard, covered the direct approach to the capital from near Manassas. The day the Federal army moved forward to the invasion of the South, Mr. Davis was advised of the fact by one of his secret agents in Washington, and he wired Johnston to abandon Harper's Ferry and effect a junction with Beauregard—an order executed with the celerity and effectiveness which could not have been surpassed by the seasoned troops of a veteran army. But a difficulty now arose. Johnston and Beauregard were commanding separate armies, and in the face of impending battle it was certainly necessary to know who exercised supreme command.



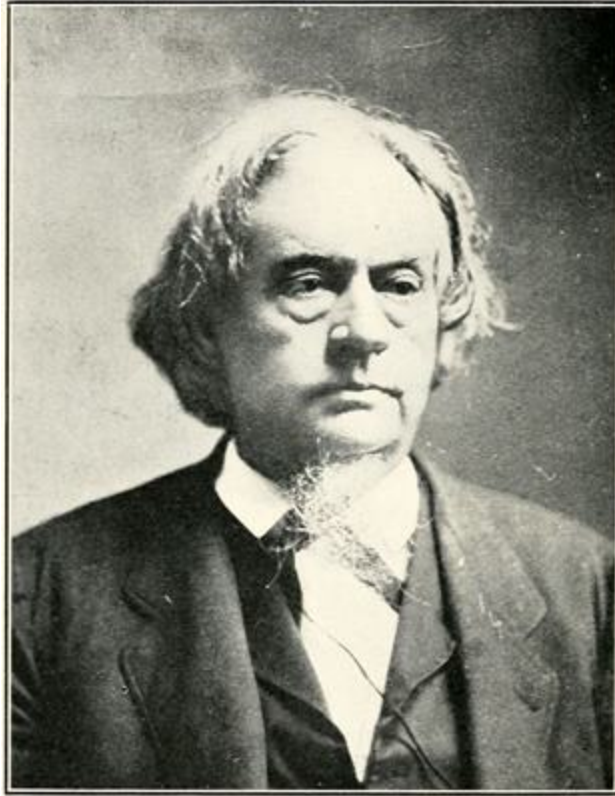
Edward Ruffin, who Fired the First Gun at Sumter

Under the law of Congress, it was doubtful if either exercised those functions, Johnston therefore wired an inquiry and received from Mr. Davis only the reply that he was general in the Confederate army. However, the anomalous situation and perhaps another motive, which will be hereafter noticed, induced the president to hasten forward, so as to be himself present upon the field of battle. When he reached Johnston's headquarters, the hard-fought day was closing, the storm of battle was dying away to the westward and General McDowell's army, routed at every point, was retreating in wild disorder toward Washington.

XVII. A Lost Opportunity

No man influential in the making of history ever knew less of the art of divining character than Jefferson Davis. Entirely ingenuous himself, he persisted in attributing that virtue to every one else, utterly failing to understand the mixed motives that influence all men in most of the affairs of life. If he perceived one trait of character, real or imaginary, which appealed to his admiration, it was quite sufficient, and forthwith he proceeded to attribute to its possessor all of the other qualities which he wished him to possess. That conclusion once reached, no amount of evidence could overthrow it or even shake his confidence in its correctness.

That peculiarity, in some ways admirable in itself, was responsible for many of his mistakes and misfortunes. The first vital one attributable to that cause was Mr. Davis' selection of the head of the commissary department of the Confederate army. Early in his military career, while stationed at Fort Crawford, a warm friendship had sprung up between himself and Lieutenant Northrop. About the time he resigned his commission an accident befell Northrop which compelled him to retire from the army also. Thereupon he studied medicine and afterward locating in Charleston became a zealous convert to the Catholic faith and beyond the spheres of church quarrels and religious polemics, remained an unimportant factor in his community. Indeed he seems to have been unable to manage his own small affairs with any degree of success, and many of his neighbors and friends believed him to be of unsound mind. Mr. Davis had not seen him, and probably knew little of his life since he left the army, a quarter of a century before. A superficial inquiry must have demonstrated that Dr. Northrop was wholly unfitted by education, temperament and experience for a position which required business training and executive ability of the first order. However, Mr. Davis, remembering the man as he had supposed him to be years before, proceeded to appoint him to the most important and difficult position under the government.



Robert Toombs

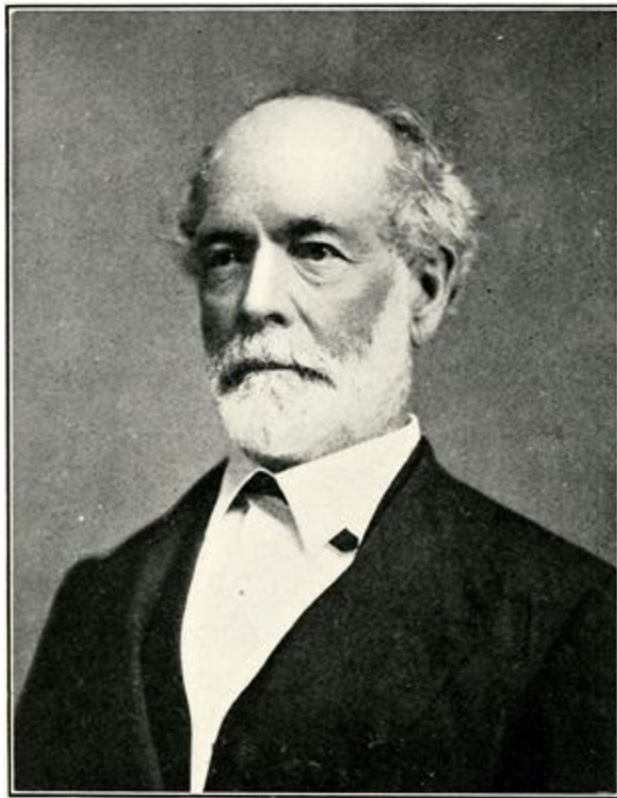
Colonel Northrop, of course, had ideas of his own and he proceeded to execute them without the slightest regard for the wishes or opinions of the able and experienced generals who commanded the Confederate armies in Northern Virginia.

Near Manassas, where Johnston and Beauregard had been ordered to form a junction, a railroad branched off from the main line and traversed the famous Shenandoah Valley, then and afterward known as the granary of the South. To have supplied the armies with provisions by the use of that line whose rolling stock was then comparatively idle would have been one of the easiest of military problems; but instead of following that course, breadstuffs were transported first from the Valley to Richmond and thence over the sadly overtaxed main line to the army at Manassas. But one result was possible which, of course, was the almost complete failure of the commissary department. Most of the Southern troops went hungry into the battle of Bull Run, and not until ten o'clock at night could meager rations

be procured for the exhausted army. This fact was the real reason why General Johnston did not pursue the routed army of McDowell. Johnston, Beauregard and President Davis all concurred in the necessity of following up the victory, and the latter actually dictated the order to Colonel Jordan, but as the commissary department had completely gone to pieces, no forward movement was possible then, or, indeed, for months afterward.

XVIII. The Quarrel with Johnston

A greater calamity than this, which practically nullified the fruits of the victory, soon occurred in the beginning of that unnecessary and calamitous quarrel between the President and General Johnston. Much that is untrue has been written about its origin, but the facts as learned from the principals themselves, and all the records in the case, refer it to a single cause which may be stated in few words.

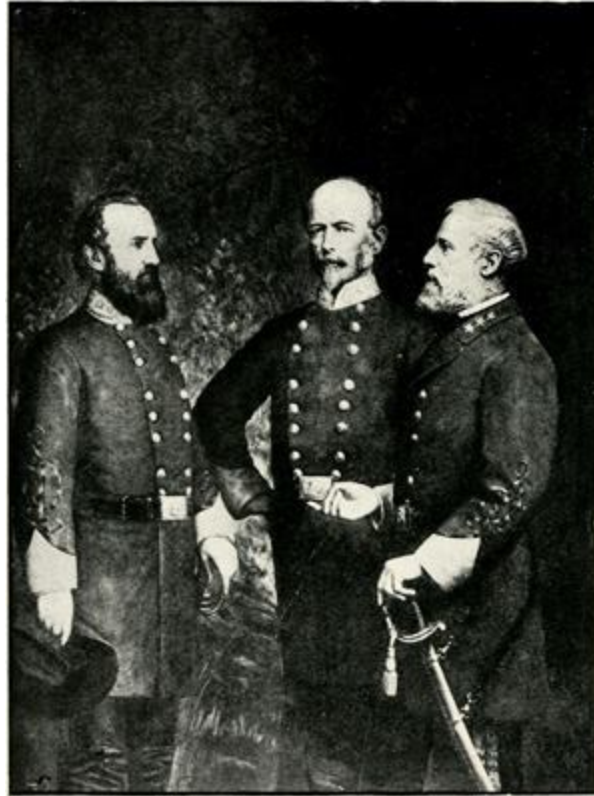


General Joseph E. Johnston

In March, 1861, the Confederate Congress enacted that the relative rank of officers should be determined in the new army by that which they held in

that of the United States. General Johnston alone of those who resigned from the old army held the rank of Brigadier-General and therefore, it would seem, should have become the senior general in the Confederate armies. In fact, he was recognized as such by the government until after the battle of Bull Run.

However, on the Fourth of July the President nominated five generals, three of whom took precedence over Johnston, thus reducing him from the first general to that of fourth, and in August Congress confirmed the nominations as made. Upon learning what had been done, General Johnston wrote the President, protesting against what he conceived to be a great injustice. His language was moderate and respectful, and it is impossible to read his argument without acknowledging its faultless logic. The President, however, indorsed upon the document the single word "Insubordinate," and sent to the writer a curt, caustic note, which without attempting any answer or explanation summarily closed the matter. That Johnston was deeply wounded admits of no doubt, but he was too great a soldier and man to allow this snub to influence his devotion and service, and his attitude toward the President remained throughout the struggle eminently correct. Mr. Davis however, was never able to understand those who differed from his views. General Johnston often did so; wisely as the sequel always proved, but the President invariably attributed this difference to the wrong cause. The breach was thereby kept open and with what results we shall see.



Generals Lee, Jackson and Johnston

The most important result of the victory of Bull Run was the tremendous enthusiasm that it stirred throughout the South. Volunteers came forward so rapidly that they could not be armed and the belief became general that it was to be “a ninety days’ war.” President Davis, however, nursed no such delusions. He knew the temper of the great and populous states of the North, and he fully realized that defeat would teach caution while arousing stronger determination. He, therefore, sought to impress upon Congress the necessity of stopping short enlistments and the advisability of passing general laws which would place the country in position to sustain a long war. But the times were not propitious for that kind of advice, and it was lost upon a body whose enthusiasm had temporarily exceeded its judgment and discretion.

XIX. The Battle of Shiloh

In the fall of 1861 Mr. Davis was elected President of the Confederate States for a term of six years, and on the 21st of February in the following year he was inaugurated. This message may hardly be called a state paper, as it was devoted rather to a recapitulation of the events of the war than to discussion of measures or the recommendation of policies.

The tone of the message was hopeful, for notwithstanding the fall of Forts Donelson and Henry, and the evacuation of Bowling Green, the fortunes of war were decidedly with the South.

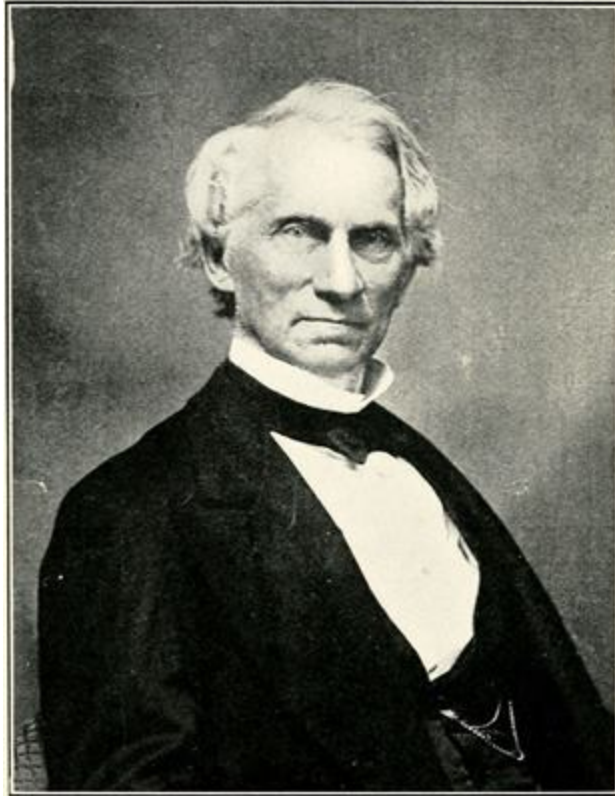
However, in those catastrophes, which Mr. Davis passed lightly over, the ablest generals in the Southern army saw the first results of the fatal policy of attempting with limited resources to defend every threatened point of a vast irregular frontier reaching from the Rio Grande to the Potomac. The three hundred thousand men in the Confederate army at that time could have captured Washington or localized the whole Federal army in its defense, but scattered over an area of more than fifteen hundred miles, strength was dissipated and at every point they were too weak to attempt more than a defensive policy. Upon this point, however, Mr. Davis was inflexible, and absolutely refused to abandon any place however insignificant from a strategic point of view, even when the soldiers holding it might have been used most effectively elsewhere.

The Federal government soon perceived that this was to be the fixed policy of the Confederate President and proceeded to make the most of it. McClellan's preparation for a blow at Richmond diverted attention from the West where General Albert Sidney Johnston was left without hope of succor to deal with the armies of Grant and Buell. That great soldier, however, was equal to any emergency and prepared to strike before Grant and Buell could effect a junction. Fatally hampered as he was by the Commissary General's lack of foresight or preparation and with a staff too small and inexperienced to render the required services, he forced General Grant into the battle of Shiloh. More brilliant generalship was never shown upon any field than was

that day displayed by the great Texan, who drove the Federal army back upon the river in the wildest confusion and disorder. At two o'clock the battle was won. A half hour later Johnston was dead—a victim of the foolish practice of the Southern generals of remaining on the firing line. The command devolved upon Beauregard who, instead of completing the victory, stopped the battle while more than two hours of daylight remained. He thereby lost all that had been gained and insured his own defeat, for during the night, Buell's corps crossed the river and easily routed his army on the following day.

What motives actuated Beauregard in this matter can only be conjectured. His amazing conduct was never even plausibly explained by himself. It was certainly not treachery, for his patriotism was unbounded. It was not incompetency, for tried by the usual standards, he was not lacking as a general.

He at that time was not on good terms with the President, and then and ever he was vain and covetous of honors and fame. Had he completed the victory, the administration, the world, history would have credited it to Johnston. Had he succeeded in winning it on the following day, it would have been his own. From all that can be learned some such reason must have influenced him in halting a victorious army in the moment of its triumph.



C. G. Memminger

When the news of the fatal affair at Shiloh reached Davis, his rage knew no bounds, but instead of relieving Beauregard of his command and bringing him promptly before a court martial, as Frederick or Napoleon would have done, he allowed him to remain at the head of the Western army without even administering a reprimand. In fact, not until Beauregard had left the army on sick leave about a month later did the President express any disapprobation. Then he declared that nothing would ever induce him to restore the offender to any command. But in most cases Mr. Davis' anger was short lived, and while we must admire that gentleness which undoubtedly was responsible for his never punishing any offender, it was nevertheless a weakness in the South's Chief Executive from which it was destined to suffer greater ills than flowed from the oblivion which soon shrouded the offenses of this particular general.

XX. The Seven Days of Battle

The gloom cast over the South by the reverses of the West by no means discouraged President Davis, and taking the field in person he aided and directed his generals in preparing for the defense of Richmond against the impending attack of McClellan.

The seven days' battle before Richmond are particularly interesting to the military critic by reason no less of the valor displayed upon both sides than for the masterly strategy used by the two great antagonists.

General Johnston, who had been severely criticised by the President, remained long enough on the field of Seven Pines to demonstrate the soundness of his plans by winning a great victory before he was stricken down and borne unconscious to the rear. General Lee succeeded Johnston, and being reinforced by the indomitable Stonewall Jackson, whose soldiers were inspired by a series of recent magnificent victories in the Valley of Virginia, drove McClellan back so rapidly through a strange and difficult country that the wonder is he did not lose his entire army.

For this feat, which must be regarded as one of the most brilliant pieces of maneuvering in history, General McClellan was held up to execration and even his patriotism was questioned. In fact, the belief is still general that he lost the opportunity to capture Richmond, when as a matter of fact he could not have done so with an army of twice the size he commanded, as must be evident to any one who will remember that it took Grant, with an army of 200,000 men, more than a year to accomplish that result when confronted not by 100,000 of the best troops the world ever saw led by a dozen generals, either one of whom Napoleon would have delighted to have made a marshal, but by less than 40,000 worn, starved and ragged veterans whose great commanders with one or two exceptions, had fallen in battle. President Davis was not an ungenerous enemy and at the time, as well as frequently in later life, expressed warm admiration for the soldierly qualities that enabled McClellan to extricate himself from a situation which must have proved fatal to a less able commander.

XXI. Butler's Infamous Order 28

This series of victories in some measure offset the blow the South sustained in the fall of New Orleans, and immediately thereafter the President attempted to deal with the situation in that quarter in a way which will serve to throw a strong side light upon another phase of his character. General Butler had hanged a semi-idiotic boy by the name of Munford for hauling down the flag from the mint. The act was one of impolicy, if not of wanton barbarity, and it aroused a storm of indignation throughout the South. This was, in a few days, followed by the infamous "Order No. 28," which in retaliation for snubs received at the hands of the women of New Orleans, licensed the soldiers, upon repetition of the offense, "to greet them as women of the town plying their avocation."

President Davis at once issued a proclamation declaring Butler an outlaw, and placing a price upon his head and commanding that no commissioned officer of the United States should be exchanged until the culprit should meet with due punishment. The officers in Butler's army were also declared to be felons, their exchange was prohibited and they were ordered to be treated as common criminals.

As to the justice of the proclamation so far as it related to Butler himself few North or South at this day who have read "Order No. 28" will be inclined to question. But to attempt to attain to the officers of a numerous army with the guilt of a personal act of its commander must, upon due reflection, have appeared as absurd to the President as it did to the rest of the country. As a matter of fact the proclamation was never attempted to be executed although abundant chances were presented, and it is very probable that had Butler himself fallen into the hands of the Confederates he would have had nothing worse than imprisonment to fear had his fate been left to the President.

Mr. Davis, as we all know, issued some very sanguinary proclamations in his time, but they were altogether sound and fury, "signifying nothing," and not one of them was ever enforced. He no doubt hoped that their terrible

aspect would operate as a deterrent and no doubt they did at first. But gradually their seriousness came to be questioned and then they became a subject of amusement to both friend and foe. During his most eventful administration, although hundreds of death warrants of criminals, who richly deserved the extreme punishment, came before him he never signed one of them or permitted an execution when he had the slightest opportunity to interfere.

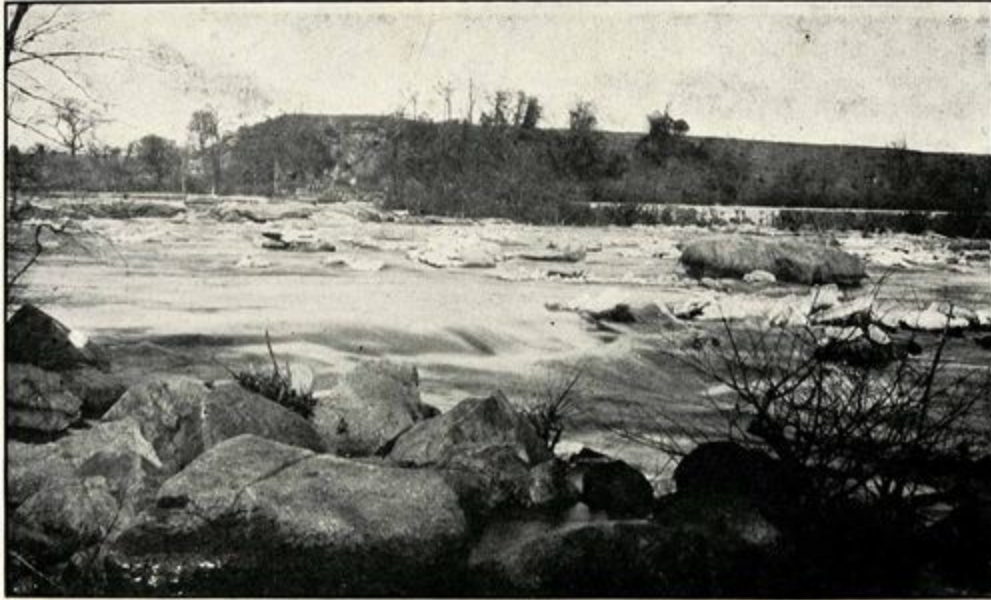
This, of course, was charged by Pollard and other enemies to his desire to save himself, in the event the Confederacy should fail, but no motive could have been further from the correct one than this view of the case. The truth is that Jefferson Davis was as kindly, tender, gentle and considerate as a woman, and it was quite impossible for him to assume the responsibility of inflicting serious punishment or suffering of any kind upon any of God's creatures, human or otherwise. Had he hanged a few prisoners upon one or two occasions, it would have been of inestimable benefit to the South; had he executed one or two deserters in 1864, he would at once have checked an evil which was threatening the very existence of the Confederacy, but he did neither, although fully realizing the impolicy of his course. And whatever we may think of his strength of character we can but love the man whose humanity triumphed over passions, prejudice, policy and wisdom and brought him through those awful times that frightfully developed the savage instinct in the best of men without the taint of bloodshed upon his conscience.

XXII. Mental Imperfections

History must finally charge all of Mr. Davis' blunders to no moral defective sense but rather to imperfect mental conceptions augmented and intensified by a strong infusion of self-confidence and stubbornness which frequently destroyed the perspective and blinded him to the truth apparent to other men of far less capacity. Criticism, however well meant, never enlightened him to his own mistakes.

If he made a bad appointment, he saw in the objection to his protege ignorance of his merit, jealousy, a disposition to persecute, in fact anything rather than the possibility that he himself might have made a mistake.

This unfortunate mental attitude, combined with the fixed idea that his genius was that of the soldier was responsible for the most unfortunate acts of his life. What his real merits as a soldier were we can only conjecture. In the Mexican War he demonstrated first-rate ability, but his highest command was that of a regiment. Although he constantly interfered with some of his generals with suggestions, sometimes tantamount to commands, he never exercised the military prerogative in directing troops in the field. We know that those suggestions were often wrong, but before concluding that his capacity as an active commander must be determined by them, we must remember that they were given usually at a great distance, and that they might have been otherwise had he understood the situation as thoroughly as he supposed he did. There is probably no doubt that he would have proved a splendid brigade commander, but it is more than doubtful if he could ever have understood the science of war as Lee or Johnston or Jackson knew it.



The Site of the Prison Camp on the James Below Richmond

In Virginia, where President Davis did not attempt to interfere with his generals, the most brilliant triumphs of the South were won, and while this is not assigned as the only reason, the fact is nevertheless significant. From second Manassas, where the vain, boastful General Pope, who had won notoriety at Shiloh by reporting the capture of 10,000 Confederates whom he must also have eaten as they never figured in parol, prison or exchange lists—was annihilated by Jackson, to the brilliant victory of Chancellorsville where the great soldier sealed his faith with his life-blood, the army of Northern Virginia was handled with that consummate generalship and displayed a degree of heroism which must ever challenge the admiration of mankind as the most perfect fighting machine in the world's history.

XXIII. Blunders of the Western Army

During this time the Western army suffered one disaster after another in such rapid succession that the warmest friends of the Confederacy began to despair of its future. Thoroughly alarmed. President Davis overcame his animosity sufficiently to send General Johnston to the rescue, but instead of giving him full authority over one or both of the armies he designated him as the commander of a geographical department with little more than the power usually invested in an inspector general.

Bragg, the most unfortunate of all the Southern generals, commanded in Tennessee, where he was out-generaled and defeated at Murfreesboro when he held all of the winning cards in his own hands. His blunders upon that field so enraged his officers that they were almost in revolt against him. However, in his fidelity to his old friend and comrade, Mr. Davis failed to discover what was evident to every intelligent lieutenant in the army, and Bragg was continued in command to perpetrate other blunders still more costly and unpardonable.

The Southern corps of the Western army was still worse handled. The Mississippi River, after the fall of New Orleans and Memphis, was of little or no use to the Confederacy, but Mr. Davis conceived the idea that it must be defended although that course, necessarily would weaken Bragg and render success impossible to either corps.

To the command of the Southern corps, Mr. Davis appointed General Pemberton, a theoretical soldier who it was alleged had never witnessed any considerable engagement. However this may be, his conduct fully sustained the allegation, for, from start to finish, he seems to have been mystified by the tactics of Grant and Sherman, and after a series of marches and countermarches in which he lost much and gained nothing he fell back on Vicksburg, perhaps the most indefensible city in America, and prepared to sustain a siege, the outcome of which could not be doubtful for a moment.



On the Field of Cold Harbor Today

Being safely driven into a position from which there was but one line of retreat, Pemberton appealed to the President for aid, and General Johnston was instructed to furnish it. His soldierly mind saw at a glance that the proper thing to do was to abandon Vicksburg, and he accordingly ordered Pemberton to do so. That officer protested and appealed to Mr. Davis, who sustained him and notified Johnston that under no circumstances must Vicksburg be abandoned. That decision sealed the fate of Pemberton's army, and on the day General Grant invested it he telegraphed to Washington that its fall was only a question of time. How that prediction was verified by the surrender of Pemberton's army of 30,000 men, thus leaving Grant and Sherman free to double back on Bragg, are too well known to need any discussion at this time. All thinking men realized that it sealed the doom of the Confederacy unless the Northern campaign of General Lee should prove successful.

XXIV. Davis and Gettysburg

The conception of the Gettysburg campaign has been properly attributed to Mr. Davis, but much of the criticism that it has evoked is unfair being based upon a misconception of the object sought to be attained. If one will consider the moral effect that the victory of Chancellorsville produced throughout the North, that many influential leaders and a large part of the press openly declared that another such calamity must be followed by the recognition of the Confederacy, the idea of this Northern campaign, it must be conceded, was founded upon sound military principles. Military critics are very generally agreed that Gettysburg would have been a Confederate instead of a Union victory had the Southern troops occupied Little Round Top on the evening of the first day. That they did not is a fortuitous circumstance, which can militate nothing against the soundness of the idea involved in the campaign, while the fact that a victory so great as to have been decisive lay within easy grasp of the Confederates would seem to amply justify the hazard on the part of President Davis.

The last reasonable hope of success was over when Lee retreated from Pennsylvania, but if Mr. Davis recognized that fact he gave no indication of it. On the other hand, adversity had begun to develop that real strength of character which a little later was destined to win the respect of his enemies and the admiration of the rest of the world.

Confederate finances had now sunk to so low an ebb that a collapse seemed inevitable. Congress passed one futile piece of legislation after another, each worse than its predecessor, and matters went from bad to worse with startling rapidity. Mr. Davis was not a financier, but he brought forward a plan which, while it laid perhaps the heaviest burden of taxation ever placed upon a people, nevertheless served for a time to stem the fast rising tide of national bankruptcy.

About the same time, deeply impressed with the suffering of Federal prisoners caused by the cruel policy of refusing exchanges, he attempted to send Vice-President Stephens to Washington to negotiate a general cartel

with President Lincoln, but Stephens was allowed to proceed no farther than Fortress Monroe, and nothing came of the mission which was conceived by Mr. Davis purely in the interest of humanity.

As the fall drew on, Bragg was being pressed steadily back by an overwhelming force under Rosecrans, and it became apparent that another disaster was impending over the Confederacy. To avert it President Davis hurried Longstreet's corps forward as reinforcements, a policy the soundness of which was demonstrated a little later by the great victory of Chickamauga.

But again Bragg failed to measure up to the situation, and instead of capturing or destroying his antagonist, which a prompt pursuit must have insured, he actually refused to understand that he had won a victory until its fruits were beyond his reach. Not even that costly piece of stupidity could quite shake the confidence of the President in his old friend, and it was not until Bragg had insured and received his own disastrous defeat at Missionary Ridge and Lookout Mountain, by sending Longstreet's whole corps away on a wild-goose chase against Knoxville, that his resignation was accepted; and even then he was taken to Richmond and duly installed as the military adviser of the Chief Executive.



The Battle of the Crater

The fortunes of the Confederacy were now at a low ebb. The Western army was demoralized and so hopeless seemed the task of reorganization that one general after another refused to undertake it, until in his dilemma the President turned once more to General Johnston. That splendid soldier, forgetting past injuries, accepted the command and soon succeeded in creating an army whose very existence infused new courage throughout the Confederacy. In the meantime, Mr. Davis' resolution rose superior over the reverses that were everywhere overwhelming his government, and our admiration for the man vastly increases as we see him steering, wisely now, his foundering nation into that dark year 1864, destined to reveal to us a great man growing greater, better and more lovable under the heavy accumulation of terrible misfortune.

XXV. The Chief of a Heroic People

The world has never witnessed a more sublime spectacle than that presented by the Southern people at the beginning of 1864. The finances of the government had gone from bad to worse until it required a bursting purse to purchase a dinner. Or, rather it would have done so had the dinner been procurable at all, which in most cases it was not. Gaunt famine stalked through a desolate land scarred by the remains of destroyed homes and drenched in the blood of its best manhood. Scarcely a home had escaped the besom of death and destruction, and, on the lordly domains where once a prodigal and princely hospitality had been daily dispensed, children cried in vain for the bread that the broken-hearted mother could no longer give. That such terrific desolation should have failed to force submission is almost beyond understanding, but it produced exactly the opposite result.

Delicately nurtured women, reared in ease and luxury, cheerfully chose to starve in thread-bare garments while they sent their silver and jewels to the government to enable it to continue the struggle. They bade their husbands and sons and brothers to remain at the front and never sheathe their swords unless in an honorable peace; and forthwith the stripling of tender years and the gray-bearded grandsire, bowed with the infirmities of time, went forth to perform prodigies of valor upon the last sanguinary fields of the dying Confederacy.

The President of the Confederacy was too wise a man not to realize the significance of the situation at that time. He fully realized the awful suffering of his people. He saw his armies driven from the West, the lines of the Confederacy daily contracting. He saw the last hope of foreign intervention die and he witnessed the birth, even in the government, of a strong spirit of hostility to himself. What this must have meant to a man of his sensitive, kindly nature we may readily guess, but to the world his attitude was most admirable. Calm, resolute, majestic he stood at the helm, steering the foundering craft of state through the last storm as steadily, as resolutely as though he knew a haven of safety instead of destruction to lie just beyond.



Mr. and Mrs. Davis in 1863

Early in 1864 it became apparent that such an effort as had never been made before to crush the Confederacy was impending. General Grant was transferred to the East, and early in the spring with a magnificent army of 162,000 began his advance upon Richmond. The great Confederate chieftain, Lee, with a force one-third as great confronted him, and then began that mighty duel which must always remain the wonder and admiration of the world. In the Wilderness Lee struck a staggering blow, which halted the advance and doubled up the Federal army. Grant announced that he proposed to fight it out on that line if it took all summer, straightened his lines and began the campaign, which one may more readily understand if he will imagine some Titan armed with a ponderous hammer, confronting a wily, agile antagonist, who must rely upon a rapier sharp, indeed, but slender to a dangerous degree. Incessantly through those spring days the forests rang with the clamor of blows. At Culpepper and

Spottsylvania and North Anna the hammer fell and was parried by the rapier, Grant always moving by the flank and seeking to out-maneuver his antagonist and always failing to do so. By June, the two armies in their side-stepping tactics had reached Cold Harbor, where Grant in a great frontal attack lost 13,000 men in a few moments, which must have convinced him that it would take longer than all summer to fight it out on that line, as he then and there abandoned it and adopted a new one. In three months he had lost 150,000 men and was not so near Richmond as McClellan had been in 1862.

XXVI. Sherman and Johnston

In the meantime that campaign which was destined to place Sherman and Johnston in the very front rank of the world's great commanders, was in progress. Both were masters of military strategy and each fully appreciated the ability of the other. Sherman ever seeking to draw Johnston into a pitched battle was constantly thwarted. At Dalton, Resaca and Marietta Johnston delivered hard blows, falling back before his antagonist could use his superior numbers to any advantage.

By this means he reached Atlanta with a larger army than he had in the beginning of the campaign, while that of Sherman had decreased from one hundred to little more than fifty thousand. Johnston's tactics of wearing out the enemy by drawing him through a hostile country away from his base of supplies is now admitted by military critics to have been a piece of masterly strategy. It is also generally conceded that Sherman could not have captured Atlanta by siege with three times his force. But although Johnston had repulsed every assault upon his works and was daily growing stronger, President Davis was greatly displeased with this defensive policy and constantly importuned him to give battle. This Johnston refused to do and was relieved of the command by the President, who appointed General Hood, whom he declared "would at least deliver one manly blow for the South."

In so far as the delivery of the blow was concerned he was destined not to be disappointed, but very greatly so in the result.



The Davis Children in 1863

The very day that he took command, Hood, a brave, impetuous man of slight ability and poor judgment, left his works, furiously assaulted Sherman, and was promptly cut to pieces. The Confederate army was practically annihilated, and the fall of Atlanta made certain the success of that famous march to the sea which alone would have doomed the Confederacy.

General Johnston, too great to cherish resentment, once more yielded to the appeals of the President and took command of the shattered army. But the time had passed when he might have accomplished any substantial results and henceforth even his genius could not serve to postpone the end.

XXVII. Mr. Davis' Humanity

In the meantime, amidst these disasters and the gloomy forebodings that were settling over the South, Mr. Davis did not forget the sufferings of the army of captives that languished in Southern prisons. Time and again he had sought to establish a cartel for the exchange of all prisoners but it had never been faithfully observed by the Federal government, and at last General Grant had refused to exchange upon any terms, declaring that to do so would ensue the defeat of Sherman's army. The result was that the Southern prisons were rapidly filled, and as supplies and medicines failed, the sufferings in some places, notably Andersonville, became intense. The prisoners were placed upon the same rations as the Confederate soldiers, but they had never been used to such fare and it meant starvation to them. The ravages of malaria among them was appalling, and yet as the Federal government had made quinine contraband of war not an ounce of it could be procured for their use.

Mr. Davis, whose strongest trait of character was gentleness and humanity, felt keenly this state of affairs, and sought by every power at his command to ameliorate it. When the proposition to exchange was rejected, he asked that medicines and supplies be sent for the exclusive use of Northern prisoners. When that was refused, he asked that doctors and nurses be furnished from the Federal army. That also failing, and the condition of the sufferers at Andersonville growing worse he finally offered to liberate them provided the government would take them out of the South—a proposition which was not accepted until after many months of useless delay which cost thousands of lives.



The Famous Libby Prison as It Appeared at the Close of the War

Thus it will be seen how baseless was that calumny which yet survives in some quarters that Jefferson Davis was responsible for the sufferings of those poor unfortunates who in reality were sacrificed by an indifferent government, which feared to recruit the ranks of the Confederate army by the exchange of prisoners although such a course was dictated by the laws of civilized warfare no less than by motives of humanity. In reality Mr. Davis did far more than required by the laws of nations, and the verdict of history not only acquits him of any share in that great iniquity, but places him in marked contrast to his antagonists who chose to sacrifice their soldiers rather than jeopardize the prospects of an early final victory.

The brilliant victory of Colquitt at Ocean Pond, of Forest at Fort Pillow, and other minor successes gained by the Confederate leaders added scarcely a transient ray of hope. Clouds of smoke by day, a pillar of fire by night, marked the advance of Sherman through Georgia. The most fruitful region of the South was left a charred and desolate ruin. Tilly, the Duke of Alva, nor Wallenstein ever left destruction so complete and irremediable as that which marked the path of that great soldier who declared war was hell and fully lived up to that harsh conviction.

After the fall of Savannah, the blue legions now irresistible, turned northward, and it became apparent that the vitals of the Confederacy lay between the two huge iron jaws of Grant's and Sherman's armies which were closing with a steady force that nothing could resist.

Day and night Grant rained his mighty sledge-hammer blows upon the defenses of the devoted capital, which Lee met and parried with the skill of consummate military genius. But the blade of the rapier was growing thinner and the time must come when it would break. Holding works forty miles in length with less than a thousand soldiers to the mile, he inflicted repulse after repulse until the Southern people came to regard him as invincible.

Even Mr. Davis, who was now almost constantly with his great Captain, seems to have shared the delusion, and despite his warnings that the end must soon come delayed his departure from Richmond.

At last on Sunday, April 2, 1865, a courier entered old St. John's in the midst of services and handed the President a telegram. It was General Lee's notice that he could no longer hold his lines. Mr. Davis quietly left the church, but all understood and soon a panic reigned in the quiet old city. This was increased by the terrific explosions that came from the river and arsenals where warships and military supplies were being destroyed. That night the fires from burning warehouses lighted the train that bore out of the doomed city the President and his cabinet and the archives of the fugitive government. Whether from the sparks of the burning arsenals or from the torches of incendiaries will never be known, but that night a fierce conflagration swept over the city, and when in the gray dawn of the next morning General Godfrey Weitzel's cavalry rode through the smoldering streets and raised the stars and stripes over Virginia's ancient and the Confederates' recent capital, it floated over a scene of desolation only a little less complete than Napoleon beheld when he looked for the last time from the ancient Krimlin upon destroyed Moscow.

XXVIII. General Lee's Surrender

History has fully recorded the last scenes of the heroic effort of the peerless Lee to fall back upon Danville and effect a junction with General Johnston and it is unnecessary here to relate how surrounded by overwhelming numbers and reduced to starvation he finally at Appomattox surrendered the remaining 7,500 of that superb army which, without doubt, had been the most magnificent fighting machine in the world's history.

In the meantime the fugitive government reached Danville in a pouring rain. There were no accommodations for the officials, no place to install the executive machinery. General Breckenridge, sitting upon a camp stool in front of the damp dingy little station, studied a map and drew the lines along which Johnston and Lee should advance. The Secretary of State, reclining upon a knapsack, talked hopefully of the recognition that was certain to arrive from England and France in a few days. Mr. Reagan chewed a straw and said nothing. It was a dull day in the department of justice, and the Attorney-General paced the platform and looked thoughtfully toward Canada. At last it was decided to begin work and the clerks seated themselves around tables in the cars, and the government was soon once more issuing all kinds of orders. Mr. Davis, calm and tranquil as usual, had made up his mind never to surrender as long as resistance was possible unless he could secure favorable terms for his people. For himself he asked nothing, but he believed it his duty to continue the struggle until the fundamental principles of a free people should be secured for the South. This he did not doubt could be accomplished by the junction of Lee and Johnston. It was, of course, a great blow to his hopes when the news of Lee's surrender reached him, but he belonged to that rare type of man whose courage and resolution grow stronger in the face of adversity. His only hope now lay in Johnston's army, but with it he declared the South could conquer an honorable peace against the world in arms.



The Surrender of Lee

With this idea in view the wandering government moved on to Greensboro. There, the President was informed by General Johnston of the utter hopelessness of longer continuing the struggle. That the old veteran was right now admits of no doubt, but Mr. Davis combated the idea most vigorously. Johnston assured him that while a surrender was a matter of days in any event that Sherman would sign an agreement guaranteeing the political rights of the people in the subjugated states. This Mr. Davis rightfully believed the Federal government would repudiate, but left his general full discretion in the matter, moving on southward, intending to cross the Mississippi, join the army of Kirby Smith and continue the war in Texas.

Just as he was leaving Greensboro he received the news of President Lincoln's assassination. None who ever really knew Mr. Davis can doubt what his feelings were upon that occasion. General Reagan, who was with him, says his face expressed surprise and horror in the most unmistakable manner. "It is too bad, it is shocking, it is horrible!" he declared, and then after a moment's reflection added, "This is bad for the South. Mr. Lincoln understood us and at least was not an ungenerous foe."

That very morning the little daughter of his host came running in and in wide-eyed terror said that some one had told her that “Old Lincoln was coming to kill everybody.” Mr. Davis, taking her upon his knees, said soothingly: “You are wrong, my dear, Mr. Lincoln is not a bad man. He would not willingly harm any one, and he dearly loves little girls like you.” These incidents, trivial enough in themselves, are nevertheless interesting as indices of Jefferson Davis’ opinion of Mr. Lincoln.

XXIX. The Capture of Davis

Proceeding to Charlotte, Mr. Davis there learned of the surrender of General Johnston. Determining to make his way to Texas he decided to take a southerly route which he hoped to find free from Federal troops. A cavalry force of about two thousand accompanied him as far as the Savannah River, but there discovering General Wilson's brigade to be in the country in front it was deemed advisable for the force to disband and Mr. Davis, with Burton Harrison, his secretary, and a few others to go forward in the hope of escaping discovery.

At Irwinsville, Ga., he learned that his family, which was also proceeding westward, was but a few miles away and he was advised that the country was filled with marauders who were rifling and robbing all strangers whose appearance indicated the possession of valuables. This information, coupled with the story that Mrs. Davis' party was believed to possess a valuable treasure, so alarmed Mr. Davis for the safety of his family that he resolved to join it at all hazards. This resolution cost him his liberty.

Perhaps no event of history has ever been so grossly and malignantly misrepresented as the capture of Jefferson Davis. At the time an absurd story was published along with a cartoon in even so respectable a paper as *Harper's Weekly*, which represented Mr. Davis at the time of his capture arrayed in shawl, bonnet and hoop-skirts, and, strange as it may seem, this ridiculous screed is still accepted by thousands of intelligent people as correct history. The true facts of the case, as learned from Mr. Davis and corroborated by both General Wilson and Mr. Burton Harrison, are as follows:



Richmond as Gen. Weitzel Entered It

The Confederate President reached the spot where his wife's party had pitched its tent after nightfall. During the evening it was decided that, to avoid discovery, he would leave the party on the following day and thenceforward would proceed westward alone. About daylight the travelers were awakened by firing across a nearby stream, and Mr. Davis thinking it an attack from marauders remarked to his wife that he hoped he still had enough influence with the Southern people to prevent her robbery and stepped out of the tent. Almost immediately he returned saying it was not marauders but Federal soldiers. Mrs. Davis, frantic with fright, begged him to fly. In the darkness of the tent he picked up a light rain coat, which he supposed to be his own but which belonged to his wife, and she threw a shawl around his shoulders. His horse stood saddled by the roadside and he ran toward it, but before he could reach it a trooper interposed and with leveled carbine bade him surrender. Intending to place his hand under the foot of the soldier and topple him out of the saddle he gave a defiant answer and rushed forward. Mrs. Davis, however, now interposed and Mr. Davis

seeing the opportunity lost walked back to the tent, where a few moments later he surrendered to Colonel Pritchard of the Fifth Michigan Cavalry.

No soldier who took part in the capture of Mr. Davis ever supposed that he attempted to disguise himself, and the story of the bonnet and the hoop-skirts is, of course, pure fiction. The picture of the illustrious captive, presented in this edition, represents him exactly as he appeared at the time of his capture, when divested of the shawl and raglan, which in no way served to conceal his identity, much less his sex.

Despite the efforts of Colonel Pritchard to spare Mr. Davis all indignities, many insults were heaped upon him enroute to Macon. Once arrived at that point he was furnished with a comfortable suite of rooms and after a time General Wilson sought an interview, during the course of which Mr. Davis first learned that he was accused of complicity in the assassination of President Lincoln, and of Andrew Johnson's proclamation offering \$100,000 reward for his apprehension.

Those who knew Mr. Davis will remember him best by his habitual expression of calm dignity and benign gentleness. One would imagine that scorn or contempt could never disturb that face, but General Wilson says that when he imparted the above information that his lips curved in contempt, that his brows were knitted and that there was a deep gleam of anger in his eyes which, however, soon softened away as he remarked, with a half rueful smile, that there was at least one man in the United States who knew that charge to be false. General Wilson, of course, asked who it was, and Mr. Davis replied, "The author of the proclamation himself, for he, at least, knows that of the two I would have preferred Lincoln as president."

From Macon Mr. Davis was sent under guard to Augusta, and from thence on a river tug in company with Clement C. Clay and Alexander H. Stephens, to Port Royal, where they were transferred to a steamer which conveyed them to Fortress Monroe. During the time they were anchored off shore crafts of all descriptions swarmed around, and the insults and gibes of the morbid sight seekers keenly annoyed the illustrious prisoner, and it was a relief when a file of soldiers came to escort him ashore. He requested permission from General Miles for his family to proceed to Washington or Richmond, but this was curtly refused and they were sent back to Savannah.

XXX. A Nation's Shame

In fortress Monroe, Mr. Davis was confined in a gun room of a casement which was heavily barricaded with iron bars. Two sentries with loaded muskets and fixed bayonets were posted in the room, while two others paced up and down in front of his cell.

Escape would have been impossible for any one, however strong and vigorous, and he, now an old man, was weak, feeble and emaciated.

Yet on the third day after his incarceration, while the victorious troops of the republic were passing in solemn review before the President and generals of a great nation, there was enacted in that little cell at Fortress Monroe a scene which must forever cause the blush of shame to mantle the brow of every American at its mere mention. A file of soldiers entered the cell and Captain Jerome Titlow, with evident pain and reluctance informed Mr. Davis that he had a most unpleasant duty to perform, which was to place manacles upon him. Mr. Davis demanded who had given such an order, and upon being informed that it was General Miles, asked to see him. This was refused by Captain Titlow, who sought to induce him to submit peaceably to the inevitable. "It is an order which no soldier would give and which none should obey. Shoot me now and end at once this miserable persecution!" At the same time the fallen chieftain drew himself up to his full height and faced the soldiers, his hands clenching in convulsive grasps and his eyes gleaming like those of a hunted tiger driven to bay. A word from Captain Titlow and a soldier with the shackles in hand advanced, but before he could touch the captive he dealt him a blow which felled him upon the floor. Necessarily the struggle was a short one and in a few moments heavy irons were riveted upon his ankles and one of the foremost of living statesmen lay upon a miserable straw mattress chained as though he had been the vilest of desperate criminals.

Had Garibaldi or Napoleon after Sedan been subjected to the crowning indignity inflicted upon Jefferson Davis all Europe would have rung with the infamy of the brutal act, and yet the whirlwind of sectional strife had so

fanned the fires of prejudice and hatred that the act was generally applauded at the North, and the officer responsible for this crime against civilization for many years exhibited the shackles as though they had been a trophy of honorable victory.

Let us as Americans be thankful that such perverted sentiment was short lived, and that a day came when the infamous act was repudiated as wantonly cruel and brutal, and its perpetrators were more anxious to avoid the responsibility for it than formerly they had been to assume it. There is now no longer any doubt as to the person who is responsible for placing Jefferson Davis in irons, but it is only fair to General Miles to say that he was very young at the time. The grave charges against Mr. Davis, no doubt, served to mislead his immature judgment, and from the fact that Louis Napoleon had recently escaped from a fortification in France he, no doubt, believed that the extreme and cruel measure was necessary.

In justice it should be further stated that as soon as General Miles believed the danger of escape no longer great he gave orders for the removal of the shackles, and thereafter treated Mr. Davis with much kindness. The story of Mr. Davis' two years' imprisonment at Fortress Monroe is too well known from Dr. Craven's impartial, if somewhat fragmentary, account to need further repetition here.

XXXI. Efforts to Execute Mr. Davis

It is a difficult matter at this distance of time to realize the attitude of public sentiment against Jefferson Davis the state prisoner of Fortress Monroe. As the chief executive of the late Confederacy, he was, in popular estimation, the incarnation, if not the proximate cause, of all the sins and suffering of Rebellion, but worse than all the administration which in feverish, puerile haste had declared him an accessory to the assassination of Mr. Lincoln and upon that score had paid out of the public treasury \$100,000 for his capture, could not, or rather dared not reverse its attitude and speak the truth. The result was, of course, that the vast majority of the people at the North believed Mr. Davis to be as guilty of murder as he was of treason, and consequently there was a mighty clamor for his summary execution.

Had there been a scintilla of evidence, nay, had there been any fact which human ingenuity could have tortured into a plausible resemblance to guilty knowledge of Mr. Lincoln's death, no one will now doubt that Jefferson Davis would have been murdered as was Mrs. Serrat.

Andrew Johnston within ninety days after he had issued his ridiculously false proclamation admitted it to be without foundation—a fact which all along was fully realized by every member of the government who had personally known the accused. And yet a coterie of radicals, headed by a conspicuous member of the Cabinet, continued to search by such questionable means for incriminating evidence that it disgusted the just, conservative men of all parties, and they demanded that the senseless accusation be dropped for all time.

However, a chance yet remained to dispose of the fallen chieftain without incurring any of the trouble and risk that must arise from a trial according to the laws of the land.

Thousands of Federal prisoners had starved and died at Andersonville and throughout the North this tale of suffering had inspired such horror and indignation that there was a general demand for the punishment of those who were supposed to be responsible for it. Captain Wirz, the commandant

of Andersonville, was accordingly haled before a drum-head court martial and, despite the fact that he conclusively demonstrated that conditions responsible for the horrors of that pest hole were beyond his own control, or that of any man or number of men in the Confederacy, he was promptly convicted and was sentenced to death.

Then a serviceable, if not honorable, idea seized the hysterical radicals, which was nothing less than the feasibility of holding Jefferson Davis responsible for the horrors of Andersonville. But there again the ingenuity of malice failed to discover any evidence except that which was highly creditable to the intended victim.

All that followed in the nefarious plot is not and never will be fully known, but from the declaration of the priest, who was Captain Wirz's spiritual adviser, as well as from other authentic information, there is no room whatever to doubt that the condemned man was offered his life and liberty if he would swear that in the management of the prison he had acted under the direction of Jefferson Davis. Captain Wirz, however, was a brave and honorable man and scorning to purchase his life with such a lie, he met his fate like a soldier. This left but one other course open. If Mr. Davis were to be punished at all, it must be for treason. The idea appealed to the radicals with something of the same zest that a child experiences from its first gaudy toy, and for a time they fairly reveled in visions of a court martial which, unincumbered of the troublesome rules of evidence observed in courts of law, would speedily give the desired result.

But fortunately for the American people, there were men in the Cabinet and in Congress, who knowing the law, clearly saw that such a course of procedure must shock the whole civilized world and reduce the guarantees of the Constitution to a parity with the so-called organic law of the revolutionary despotisms of Central American and South America. Against this sentiment the ravings of the vindictive cabal availed nothing, and, as the months went by, it became evident that if a trial ever came, it must be according to the laws of the land.

XXXII. Indictment of Mr. Davis

In the meantime Mr. Davis was constantly demanding that he be given the speedy and impartial trial provided in such cases by the Constitution.

Charles O'Connor, then the greatest of living lawyers, Henry Ould and many other leading members of the bar from the Northern states volunteered to defend Mr. Davis, while Thaddeus Stevens proffered his services to Clement C. Clay. Horace Greeley, through the columns of the *Tribune*, constantly demanded that Mr. Davis be either liberated or brought to trial, and by the spring of the year 1866 he had created such a sentiment throughout the country in favor of his contentions that the government could no longer delay some action.

Accordingly in May an indictment was procured, charging Jefferson Davis with high treason against the United States, and in June of the same year Mr. Boutwell offered a resolution in Congress that the accused should be tried according to the laws of the land, which passed that body by a vote of 105 to 19.

But despite that resolution, there were those who clearly foresaw the danger involved in it, and hoping that time might dispose of the necessity for any trial at all, urged delay as the wisest measure. Consequently, despite the efforts of Greeley and Gerritt Smith, and other great men of the North, the trial was postponed until May, 1867.

Mr. Davis, weak pale and emaciated, appeared before Chief Justice Chase sitting with Justice Underwood in the Circuit Court at Richmond. The court-room was crowded to its utmost capacity and despite the stern discipline sought to be enforced it was with the greatest difficulty that the applause could be suppressed that from time to time greeted the profound logic and masterly eloquence of Charles O'Connor's great speech on a motion to quash the indictment. The arguments lasted two days and at their conclusion Chief Justice Chase voted to quash the indictment, while Justice Underwood voted to sustain it, thus necessitating a reference of the matter to the Supreme Court of the United States for final decision. In accordance

with a previous arrangement Mr. Davis was soon afterward admitted to bail, Horace Greeley, Gerritt Smith, Augustus Schell and a number of other former political enemies becoming his bondsmen.

XXXIII. Why Davis Was Not Tried for Treason

From that moment the administration knew that Jefferson Davis would never be tried for treason and drew a long breath of relief. Yes, the administration knew, but the general public, beyond the gilded vagaries about humanity and the magnanimity of a great nation to a vanquished foe, sedulously promulgated to obscure the real reason, has never understood why Jefferson Davis was never tried for the high crime which it was alleged that he had committed against the United States.

Unfortunately the restricted space at this time at the disposal of the author precludes anything more than setting forth the conclusions based upon the evidence now in his possession, of why this charge was so joyously abandoned by an administration which less than two years before had moved heaven and earth to discover any pretext which might lend the color of justice to the summary execution of the illustrious chieftain of the Confederacy.

To one in any way acquainted with popular sentiment, with the temper of the administration even in 1867, all declarations of magnanimity, generosity and abhorrence of extreme measures must seem the merest cant. It is, of course, not beyond the pale of possibility that those who in 1865 were willing to descend to any depths of infamy to secure a pretext for the execution of Mr. Davis *might* have experienced a change of heart in two years sufficiently marked to create conscientious scruples against putting him upon a fair trial in a court of justice on the charge of treason. But that theory of the case would be altogether unlikely even if we did not know that the desire of the administration to hang Jefferson Davis was just as intense in 1867 as it was two years before. That it did not attempt to accomplish that result through the regular channels of justice, is due entirely to the fact that such a trial would have opened up the whole question of secession for final adjudication by our highest court of last resort. It would have been a trial not so much of Mr. Davis as of the question of state rights, and the able lawyers of the administration, partisans as they were, had no desire to see

the highest judicial body of the land reverse an issue which had been satisfactorily decided by the sword.

Charles O'Connor's bold declaration that Jefferson Davis could never *be* convicted of treason under the Constitution as it then stood first aroused the administration to the dangers of the task that it had assumed. Mr. Johnson sent for his attorney-general and had him prepare an opinion on the case. In due time it was submitted. It was a veritable bombshell which fairly demolished every theory upon which Jefferson Davis might have been convicted of treason or any other crime.

Mr. Johnston then called to his aid two of the greatest constitutional lawyers of the age, and they agreed with the conclusions of Mr. Stanberry. Not satisfied with this, he invited the chief justice to a conference for a full discussion of the matter.

If there was ever a partisan, it was Salmon P. Chase, but at the same time he was a great lawyer and an honest and fearless man. "Lincoln," he said, "wanted Jeff. Davis to escape. He was right. His capture was a mistake, his trial will be a greater one. We cannot convict him of treason. Secession is settled. Let it stay settled!" Significant words truly from that source, and they explain the vote of the great judge who would have quashed the indictment against Mr. Davis no less than the question so often asked, "Why was Jefferson Davis never tried for treason?"

Immediately after Mr. Davis' release on bond, he went with his family to New York, and a few weeks later to Montreal, where he continued to reside until May of the following year when he again appeared before the Circuit Court in Richmond for trial. But despite the efforts of his counsel to force a trial of the case, it was dismissed by the government and thus ended ingloriously the boast of the government that it intended "in the arch traitor Davis to make treason odious."

XXXIV. Freedom, Reverses, Beauvoir

Impaired in health and longing for rest far away from the tragic scenes of the past few years, Mr. Davis accepted the invitation of English friends to visit them. But it was soon discovered that his visit was to be a continuous ovation. Everywhere he was greeted as though he had been the conqueror instead of the vanquished. The spirit that prompted those manifestations he appreciated, but it revived sad memories of the cause for which he had staked all and lost, and to avoid this lionizing he took up his residence in Paris.

The cordiality of the Frenchmen, however, surpassed that of their English brethren, and Mr. Davis soon found himself so much in the public eye that he decided to return to England. Before quitting Paris, the emperor conveyed his desire for an audience, which Mr. Davis courteously refused. Napoleon, he conceived, had acted in bad faith with the South and such was the moral rectitude of the man that he could never disguise his contempt for any one, of however exalted station, whom he believed to be guilty of double dealing of any kind.

As the guest of Lord Leigh and the Duke of Shrewsbury in Wales, Mr. Davis' health gradually improved until he felt himself once more able to enter an active business of life. The war had left him a poor man, and when a life insurance company of Memphis offered him its presidency with a fair salary he accepted, and with his family returned to America. The people of Memphis soon after his arrival presented him a fine residence, but this he refused.

Mr. Davis was probably a very poor business man and his associates of the insurance company were in no way superior, for its affairs soon became anything but prosperous. All of his available capital was invested in it, but this he gladly sacrificed in order to sell his own company to a stronger one which could protect the policies of the former.



The Davis Mansion

The people of Texas, learning of Mr. Davis' losses offered to give him an extensive stock farm in that state, but this he also refused.

Upon the Gulf of Mexico, near the little station of Beauvoir, Mr. Davis owned a tract of land which he conceived would support his family, and there, far from the strife of the busy world, he resolved to spend the declining years of his life. However, retirement at best could only be partial, for a man loved and venerated as Mr. Davis was throughout the South, and Beauvoir accordingly became the shrine of the public men who sought the counsel of its sage. But with the modesty characteristic of the man he refused to advise any one upon measures of national import, since by the action of Congress he was forever disfranchised.

He would not ask pardon, sincerely believing that he had done no wrong, and when the people of Mississippi would have elected him to the United States Senate he declined the honor in words which should be perused by all who know the man as he was, during this period of his life: "The

franchise is yours here, and Congress can but refuse you admission and your exclusion will be a test question,” ran the invitation to which Mr. Davis replied: “I remained in prison two years and hoped in vain for a trial, and now scenes of insult and violence, producing alienation between the sections, would be the only result of another test. I am too old to serve you as I once did and too enfeebled by suffering to maintain your cause.”

Any word that might serve to still further increase that alienation never passed the lips of the gentle, kindly old man, who still the idol of his people, preferred to all honors the quiet life there among the pines, where amidst his flowers he played with his children and their little friends, and far into the night, surrounded by his books, he worked assiduously upon his only defense, “The Rise and Fall of the Confederate States of America.” The concluding paragraph of that book, written in the gray dawn of a summer morning after a night of continuous labor, should be read by every one who would understand the motives that actuated Jefferson Davis in the great part that he played in the world’s history.

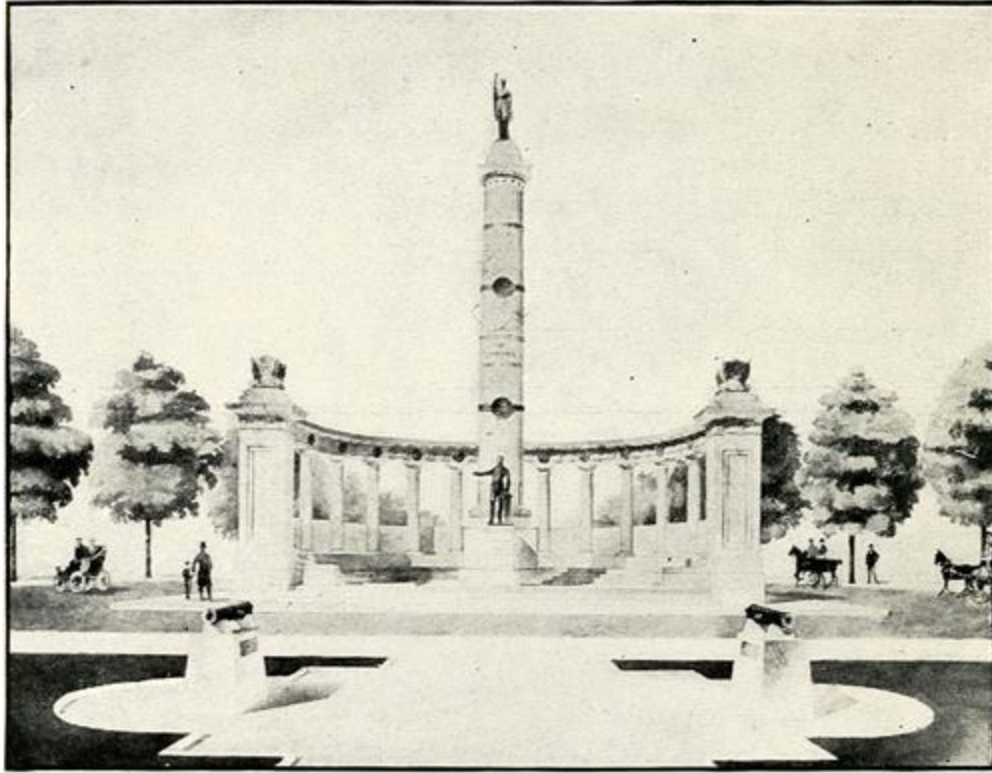
“In asserting the right of secession it has not been my wish to incite to its exercise. I recognize the fact that the war showed it to be impracticable, but this did not prove it to be wrong; and now that it may not be again attempted, and the Union may promote the general welfare, it is needful that the truth, the whole truth, should be known so that crimination and recrimination may forever cease, and then on the basis of fraternity and faithful regard for the rights of the states there may be written on the arch of the Union ‘Esto perpetua.’”

It is the voice of the soul in defeat, yet strong and conscious of its own integrity, recognizing the inevitable and praying for peace and the perpetuation of that Union which Jefferson Davis still loved.

XXXV. Death of Mr. Davis

His life's work was done with the completion of his book, and trusting to impartial posterity for that vindication of his motives which he realized must come some day, he turned away from the scenes of controversy and contentions, seeking in books, the converse of his friends, in long rambles with his children across wood and field, for oblivion of all painful memories. Defeat and persecution never embittered him. Cruel and false accusations found their way to his sylvan retreat. That they grievously wounded can be doubted by no one who knew his proud spirit, supersensitive to every insinuation of dishonor, but with the gentle smile of a philosopher he passed them by, fully realizing that his beloved people of the South, at least, would understand the stainless purity of all his motives.

A harsh or an unkind word never passed his lips concerning any of his personal or political enemies. In fact, it would be no more than the truth to say that this gentle old man cherished no sentiment of enmity toward any of God's creatures. The storm and stress of life were over, its hopes and its passions were dead, and grandly, majestically this man, who at once embodied the highest type of American manhood and all of the virtues of the perfect Christian gentleman, calmly awaited the end. It came on the 6th of December, 1889, in New Orleans, at the home of Judge Fenner, his life-long friend. When the news of his death went forth, even the voice of malice was subdued, and many of those who had sought to fix everlasting infamy upon his name ceased for a time to be unjust and agreed that a majestic soul had passed. Over the bier of the dead chieftain the whole South wept and nine of its governors bore him to the grave.



The Davis Monument at Richmond

No proper estimate of the life and character of Jefferson Davis is possible in the restricted scope of this work, but lest I should be accused of partiality I shall here append the conclusion of Ridpath, the historian, written after a residence of almost a year under the same roof with Mr. Davis, which I heartily endorse as a correct estimate of the man.

“Before I had been with Mr. Davis three days every preconceived idea utterly and forever disappeared. Nobody doubted Mr. Davis’ intellectual capacity, but it was not his mental power that most impressed me. It was his goodness, first of all, and then his intellectual integrity. I never saw an old man whose face bore more emphatic evidences of a gentle, refined and benignant character. He seemed to me the ideal embodiment of ‘sweetness and light.’ His conversation showed that he had ‘charity for all and malice toward none.’ I never heard him utter an unkind word of any man and he spoke of nearly all of his famous opponents. His manner may be best described as gracious, so exquisitely refined, so courtly, yet heart warm. Mr.

Davis' dignity was as natural and charming as the perfume of the rose—the fitting expression of a serene, benign and comely moral nature. However handsome he may have been when excited in battle or debate, it surely was in his own home, with his family and friends around him, that he was seen at his best; and that best was the highest point of grace and refinement that the Southern character has reached.”

Lest any foreigner should read this statement, let me say for his benefit that there are two Jefferson Davises in American history—one is a conspirator, a rebel, a traitor and “the Fiend of Andersonville”—he is a myth evolved from the hell-smoke of cruel war—as purely an imaginary a personage as Mephistopheles or the Hebrew Devil; the other was a statesman with clean hands and pure heart, who served his people faithfully from budding manhood to hoary age, without thought of self, with unbending integrity, and to the best of his great ability—he was a man of whom all his countrymen who knew him personally, without distinction of creed political, are proud, and proud that he was their countryman.

This is a conclusion by no means extravagant, a conclusion which, despite the fact of some mental faults that prevented him from quite attaining to the first rank of the greatest statesman, nevertheless leaves him pre-eminent as one of the purest and best of the men who has played a conspicuous part in the world's history.

FINIS.

*** END OF THE PROJECT GUTENBERG EBOOK THE REAL
JEFFERSON DAVIS ***

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